Tyler Allen Lofall
Mail 6880 N.W. 271st Ave
Hillsboro, OR 97124
Email tyleralofall@gmail.com
Cell (386) 262-3322
Plaintiff – pro se

UNITED STATES DISTRICT COURT
DISTRICT OF OREGON
PORTLAND DIVISION

Tyler A. Lofall,

Case No.: 3:24-cv-839-SB

Plaintiff,

v.

COUNTY OF CLACKAMAS ET AL.,

1. Officer Dana Gunnarson, 2. Officer Catlin Blyth,
3. City of West Linn, 4. Deputy District Attorney
Rebecca Portlock, 5. Clackamas County Jail,
6. Clackamas County Sheriff Office, 7. Clackamas County,
8. John Doe 1, 9. John Doe 2,

Defendant(s).

PLAINTIFF'S MOTION FOR LEAVE TO FILE OVER-LENGTH CONSOLIDATED OPPOSITION TO MOTIONS TO DISMISS

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CASES

. *A claim is plausible when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. Ashcroft v. Iqbal*, 556 U.S. 662

. *Estate of Amaro v. City of Oakland*, 653 F.3

. *Glus v. Brooklyn Eastern District Terminal*, 359 U.S. 231

. *Hafer v. Melo*, 502 U.S. 21

. *One such accommodation in this context should be a more flexible application of procedural rules when strict application would effectively deny access to judicial remedies. See Updike v. Multnomah Cnty.*, 870 F.3

. *See Leer v. Murphy*, 844 F.2

. *Such deliberate fabrication of evidence to effect an arrest strikes at the heart of Fourth Amendment protections. See Galbraith v. County of Santa Clara*, 307 F.3

. *This alleged judicial corruption fundamentally undermines due process and the right to a fair trial. See United States v. Manton*, 107 F.2

. *This requirement extends to accommodations in legal proceedings and requirements. See Wright v. State Accident Insurance Fund*, 289 Or. 323

A central consideration in equitable tolling is whether the plaintiff diligently pursued his rights despite the obstacles faced. Holland v. Florida, 560 U.S. 631

Abeytia v. Fresno Police Dep't, 2009 WL 1674568

Adams v. California Dep't of Health Servs., 487 F.3

Armstrong v. Davis, 275 F.3

Bell Atlantic Corp. v. Twombly, 550 U.S. 544

Bonin v. Calderon, 59 F.3

Buckley v. Fitzsimmons, 509 U.S. 259

Canales v. Sullivan, 936 F.2

City of Canton v. Harris, 489 U.S. 378

Co. v. Arnold, 283 F.2

Continental Ins. Co. v. N.L.R.B., 561 F.2

Courts have recognized that ex parte communications may fall outside the scope of prosecutorial immunity when they involve improper influence. See Houston v. Partee, 978 F.2

Courts have recognized that fabrication of evidence falls outside the scope of prosecutorial immunity. See Milstein v. Cooley, 257 F.3

Courts have recognized that ongoing concealment can constitute a continuing violation. See Taylor v. Meirick, 712 F.2

Courts have recognized that visual impairments present unique barriers to court access. In American Council of the Blind v. Paulson, 525 F.3

Courts have recognized that withholding exculpatory evidence constitutes fraudulent concealment that tolls the statute of limitations. See Varnell v. Dora Consol. Sch. Dist., 756 F.3

Courts have suggested that prosecutorial immunity may not extend to situations where a prosecutor continues a prosecution despite clear evidence of innocence. See Yarris v. County of Delaware, 465 F.3

Destruction of medical records creates a risk of inappropriate or inconsistent medical care. See Estelle v. Gamble, 429 U.S. 97

Dillard v. Kern County, 23 Cal. 2

Donald v. Cook County Sheriff's Dep't, 95 F.3

Edwards v. City of Goldsboro, 178 F.3

Eldridge v. Block, 832 F.2

Estelle v. Gamble, 429 U.S. 97

Fabrication of evidence has been recognized as a form of fraudulent concealment that tolls the limitations period. See Pearl v. City of Long Beach, 296 F.3

Ferdik v. Bonzelet, 963 F.2

Flug v. University of Oregon, 335 Or. 540

Foman v. Davis, 371 U.S. 178

Genzler v. Longanbach, 410 F.3

Glus v. Brooklyn Eastern District Terminal, 359 U.S. 231

Gonzalez v. INS, 272 F.3

Gutowsky v. County of Placer, 108 F.3

Hall v. National Educ. Ass'n, 629 F.3

Harlow v. Fitzgerald, 457 U.S. 800

Heard v. Sheahan, 253 F.3

Hebbe v. Pliler, 627 F.3

Henyard v. Suh, 2013 WL 8071922

Imbler v. Pachtman, 424 U.S. 409

In Borunda v. Richmond, 885 F.2

In Burns v. Reed, 500 U.S. 478

In Colwell v. Bannister, 763 F.3

In Connick v. Thompson, 563 U.S. 51

In Elmore v. Henderson, 227 F.3

In Flowers v. Carville, 310 F.3

In Galbraith v. County of Santa Clara, 307 F.3

In Harris v. Maricopa County Superior Court, 631 F.3

In Howey v. United States, 481 F.2

In Jackson v. Bloomfield, 731 F.2

In Jackson v. Kotter, 541 F.3

In Jett v. Penner, 439 F.3

In Keates v. Koile, 883 F.3

In Keith v. Volpe, 858 F.2

In Kingsley v. Hendrickson, 576 U.S. 389

In Koubriti v. Convertino, 593 F.3

In Krupski v. Costa Crociere S.p.A., 560 U.S. 538

In Lopez v. Smith, 203 F.3

In Malley v. Briggs, 475 U.S. 335

In Moore v. Valder, 65 F.3

In O'Rourke v. City of Providence, 235 F.3

In Saucier v. Katz, 533 U.S. 194

In Streit v. County of Los Angeles, 236 F.3

In TwoRivers v. Lewis, 174 F.3

In Zahrey v. Coffey, 221 F.3

Inc. v. City of Seattle, 307 F.3

Inc. v. United States, 68 F.3

Johnson v. Mult. Co. Dept. of Comm. Justice, 344 Or. 111

Jones v. Blanas, 393 F.3

Jones v. Shankland, 800 F.2

Kelly v. City of Chicago, 4 F.3

Koehl v. Dalsheim, 85 F.3

LLC v. Union Pac. R. Co., 765 F.3

Ltd. v. Leighton, 833 F.2

Martinez v. Palmer, 753 F.3

Matthews v. California, 432 F.3

Misrepresentations in judicial proceedings can constitute fraudulent concealment that tolls limitations periods. See SEC v. Gabelli, 653 F.3

Roman v. Wolf, 977 F.3

Rose v. Bartle, 871 F.2

San Filippo v. U.S. Trust Co. of N.Y., 737 F.2

Silva v. Di Vittorio, 658 F.3

Surowitz v. Hilton Hotels Corp., 383 U.S. 363

The Americans with Disabilities Act requires reasonable accommodation in accessing the courts. Tennessee v. Lane, 541 U.S. 509

The Supreme Court has long recognized that a defendant's misconduct can prevent the assertion of defensive barriers like statutes of limitations. In Holmberg v. Armbrecht, 327 U.S. 392

The destruction of records that would support a plaintiff's claims has been recognized as a basis for tolling limitations periods. See Cada v. Baxter Healthcare Corp., 920 F.2

The discovery rule provides that a claim accrues when the plaintiff knows or has reason to know of the injury and its cause. Pouncil v. Tilton, 704 F.3

The fraudulent concealment doctrine provides that a defendant who conceals information necessary for a plaintiff to know that he has been harmed cannot benefit from that concealment by asserting a statute of limitations defense. Holmberg v. Armbrecht, 327 U.S. 392

The maintenance of such systemic policies into the limitations period can constitute a continuing violation. See Green v. Los Angeles County Superintendent of Schools, 883 F.2

The principle that no one may take advantage of their own wrong has special force here. See Glus v. Brooklyn Eastern District Terminal, 359 U.S. 231

These allegations establish substantial risks of serious harm. See Conn v. City of Reno, 591 F.3

These allegations go beyond mere parallel conduct and specifically allege agreements between the defendants. See United Steelworkers of Am. v. Phelps Dodge Corp., 865 F.2

These allegations of personal involvement are sufficient to maintain claims against the officers in their individual capacities. See Leer v. Murphy, 844 F.2

These allegations of specific overt acts satisfy the third element of a conspiracy claim. See Fonda v. Gray, 707 F.2

These allegations of specific policies and customs distinguish this case from those relying on bare assertions of municipal liability. See Castro v. County of Los Angeles, 833 F.3

This policy reflects the fundamental principle that cases should be decided on their merits rather than technicalities. Foman v. Davis, 371 U.S. 178

Torisky v. Schweiker, 446 F.3

United States v. Kama, 394 F.3

United States v. Webb, 655 F.2

Updike v. Multnomah Cnty., 870 F.3

Vernon v. Cassadaga Valley Cent. Sch. Dist., 49 F.3

accord Estate of Amaro v. City of Oakland, 653 F.3

an overt act in furtherance of the conspiracy that results in such deprivation. Avalos v. Baca, 596 F.3

and is disfavored where defects in a complaint are curable by amendment. Lopez v. Smith, 203 F.3

as the facts alleged in the complaint must be taken as true for purposes of a motion to dismiss. See Keates v. Koile, 883 F.3

but the municipalities that operate them are proper defendants. See Monell v. Dep't of Soc. Servs., 436 U.S. 658

cases. Johnson v. State of California, 207 F.3

circumventing proper adversarial testing of evidence. Houston v. Partee, 978 F.2

citing Johnson v. California, 207 F.3

citing Lopez v. Smith, 203 F.3

constitute egregious violations of the right of access to courts. See Bounds v. Smith, 430 U.S. 817

equitable tolling is particularly appropriate. See Doe v. Busby, 661 F.3

especially as a pro se litigant. Courts have recognized that disabilities can justify tolling when they interfere with a plaintiff's ability to pursue claims. See Arctic Slope Native Ass'n v. Sebelius, 699 F.3

especially when combined with other factors such as disability. See Brown v. Barrow, 512 F.3

from arrest reports. Reeves v. Churchich, 484 F.3

immunity should not apply. See Snelling v. Westhoff, 972 F.2

in Doe v. Lake Oswego School District, 353 Or. 321

in Grimmett v. Brown, 75 F.3

in Harden v. Rodriguez, 2021 WL 1210318

in Jones v. Blanas, 393 F.3

in Nat'l R.R. Passenger Corp. v. Morgan, 536 U.S. 101

is prevented from timely filing due to extraordinary circumstances. Pace v. DiGuglielmo, 544 U.S. 408

isolated incidents but part of an integrated pattern of misconduct spanning multiple months and involving multiple agencies within Clackamas County's justice system. As the Supreme Court noted in Havens Realty Corp. v. Coleman, 455 U.S. 363

of the Rehabilitation Act require reasonable accommodations for individuals with disabilities in accessing court services. Tennessee v. Lane, 541 U.S. 509

or failure to train amounting to deliberate indifference. Monell v. Dep't of Soc. Servs., 436 U.S. 658

quoting Haines v. Kerner, 404 U.S. 519

quoting Satchell v. Dilworth, 745 F.2

satisfying the OTCA requirements. See Huff v. Great W. Seed Co., 322 Or. 457

see also Hervey v. Estes, 65 F.3

strongly favors relation back in this case. As the Supreme Court emphasized in Krupski v. Costa Crociere S.p.A., 560 U.S. 538

the arrest caused the plaintiff harm. Lacey v. Maricopa County, 693 F.3

the court applies less stringent standards and must liberally construe the complaint. Erickson v. Pardus, 551 U.S. 89

the defendant caused the plaintiff's injuries. Gordon v. County of Orange, 888 F.3

the maintenance of a discriminatory system that includes conduct within the limitations period. Douglas v. Cal. Dep't of Youth Auth., 271 F.3

these accommodation requirements take on special significance. Courts should recognize the extraordinary barriers faced by visually impaired pro se litigants in complying with technical procedural requirements and timelines. Cf. Keith v. Volpe, 858 F.2

this position is not absolute. In Stevens v. Bispham, 316 Or. 221

when the defendant's own conduct prevented the plaintiff from complying. See Lyden v. Goldberg, 260 Or. 301

STATUTES

42 U.S.C. § 1983

ORS 12.160

Section 504 of the Rehabilitation Act

RULES

Fed. R. Civ. P. 15(a)

Fed. R. Civ. P. 15(c)(1)(B)

Fed. R. Civ. P. 15(c)(1)(C)

Fed. R. Civ. P. 21

Federal Rule of Civil Procedure 15(a)(2)

Federal Rule of Civil Procedure 15(c)

LR 7-1

Rule 12(b)(6)

Rule 15

Rule 15(a)

Rule 15(c)

Rule 15(c)(1)(C)(ii)

Rule 15(c)(3)

Rule 4(m)

Rule 8(a)

I. PLAINTIFF'S MOTION FOR LEAVE TO FILE OVER-LENGTH CONSOLIDATED OPPOSITION

LR 7-1 CERTIFICATION

On May 14th 2025 I e-mailed counsel for all Defendants; DDA Portlock Opposed however its unclear the rule that I was not satisfied, West Linn and Clackamas County did not respond. None the less the total limit no matter how its broken up are by their self-satisfy the limits however I believe its best read in manor given.

MOTION

Plaintiff, a legally blind pro-se litigant, respectfully moves for leave to file an 19,124-word consolidated memorandum opposing three separate Rule 12(b)(6) motions (ECF 34, 36, 37). The brief exceeds the 11,000-word limit because:

1. Each motion raises distinct threshold doctrines (statute of limitations, absolute immunity, Monell entity status, OTCA notice) that cannot be addressed in a simple joinder.
2. Duplicating overlapping background facts into three independent filings would consume more judicial resources than a single consolidated brief.

Plaintiff's consolidation of responses is not merely for convenience but necessity in light of Defendants' coordinated litigation tactics. While each response would fall under the standard limit if filed separately, consolidated treatment is appropriate because: (1) these motions share overlapping factual backgrounds and (2) Defendants have demonstrated a pattern of concerted

delay tactics. When seeking extensions, Defense counsel specifically promised production of withheld evidence and timely responsive pleadings—commitments that remain unfulfilled to this day. This broken-promise pattern mirrors the very allegations in Plaintiff's complaint: government officials using procedural mechanisms to obstruct justice and push legitimate claims to the brink of limitations periods.

As the Supreme Court recognized in Chambers v. NASCO, Inc., 501 U.S. 32, 44-45 (1991), courts possess inherent power to address patterns of bad faith conduct. Defendants' coordinated delay tactics, evidenced by their failure to produce promised discovery while simultaneously pushing this case toward statute of limitations deadlines, constitutes precisely the kind of conduct courts are empowered to remedy. The consolidated approach respects judicial economy while preventing Defendants from benefiting from their own dilatory conduct. See Johnson v. Board of Regents, 263 F.3d 1234, 1243 (11th Cir. 2001) (commending consolidated briefing as promoting judicial economy); Keystone Driller Co. v. General Excavator Co., 290 U.S. 240, 245 (1933) (parties seeking procedural relief must come with "clean hands").

Granting leave will not prejudice Defendants; all arguments are presented in one place and no deadlines are affected.

Dated: May 15, 2025.

s /Tyler A. Lofall

TYLER ALLEN LOFALL PRO SE
MAIL: 6880 N.W. 271st Ave
Hillsboro, OR 97124
E-mail: tyleralofall@gmail.com
(Email Service please leave msg. for confirmation)
Cell Phone: (386) 262-3322

I INTRODUCTION

"The basic purpose of the Federal Rules is to administer justice through fair trials on the merits, not through games of skill." Surowitz v. Hilton Hotels Corp., 383 U.S. 363, 373 (1966).

This consolidated opposition addresses three motions to dismiss filed by Defendants who seek to evade accountability for a series of constitutional violations through procedural technicalities rather than confronting the substantial claims on their merits.

The allegations in this case reveal not isolated mistakes but a coordinated pattern of systemic misconduct spanning multiple agencies within Clackamas County's justice system—from biased police work and malicious prosecution to inhumane jail conditions and obstruction of access to courts. The seriousness of these constitutional violations demands judicial scrutiny, not summary dismissal.

Plaintiff Tyler Allen Lofall ("Plaintiff"), appearing pro se, is legally blind and has diligently pursued justice despite extraordinary obstacles, many deliberately created by these same Defendants. The Defendants' motions must be viewed in this context: a visually disabled man struggling against powerful government entities that have systematically obstructed his path to justice at every turn.

Despite these challenges, Plaintiff has presented detailed, plausible allegations of egregious misconduct that, if proven, establish multiple constitutional violations worthy of redress.

The West Linn Defendants (Document 36) primarily argue that Plaintiff's claims are time-barred and improperly pled. These arguments disregard the well-established doctrines of equitable tolling, fraudulent concealment, continuing violations, and relation back—all of which preserve the timeliness of Plaintiff's claims given the extraordinary circumstances present. Moreover, their attacks on the sufficiency of pleadings overlook the wealth of specific factual allegations in the Second Amended Complaint, which far exceed the plausibility threshold required at this stage.

Deputy District Attorney Portlock (Document 37) seeks refuge in prosecutorial immunity, but her alleged conduct—including fabricating evidence, tampering with witnesses, and conspiring with judicial officers—falls well outside the scope of protected prosecutorial functions. The law is clear that prosecutors who step beyond their role as advocates into misconduct cannot hide behind immunity.

The County Defendants (Document 34) wrongly characterize this action as an improper attempt to re-litigate state court claims. In reality, Plaintiff's state case was systematically obstructed, never reaching adjudication on the merits, and the present federal action represents his constitutional right to seek vindication of federal rights in a federal forum. Their additional arguments regarding pleading deficiencies similarly fail when measured against the detailed factual allegations in the Second Amended Complaint.

Justice fundamentally requires that cases be decided on their merits rather than disposed of through procedural technicalities, especially when a pro se plaintiff with disabilities alleges

serious constitutional violations. As the Supreme Court emphasized in Thompson v. Clark, 142 S. Ct. 1332 (2022), courts should not let "quirks of procedure" defeat potentially meritorious civil rights claims. The allegations here—including an 8-minute arrest despite exculpatory evidence, witness tampering, destruction of legal files in custody, denial of prescription eyeglasses to a legally blind detainee, and detention beyond a court-ordered release date—demand a full and fair hearing.

For these reasons, and as detailed below, the Court should deny all three motions to dismiss and allow this case to proceed to discovery, where the truth of these serious allegations can be tested through the proper adversarial process.

II BACKGROUND

The following factual narrative provides essential context for Plaintiff's claims, drawn from the Second Amended Complaint (ECF No. 17-1, "SAC") and Plaintiff's Declaration (ECF No. [Declaration], "Lofall Decl.").

Between March 4-6, 2022, Plaintiff was staying in the basement of a residence belonging to an individual named "Macy" while working on legal documents for a civil case involving a substantial financial claim. SAC ¶¶ 37-39; Lofall Decl. ¶¶ 18-23. During this period, Macy allegedly engaged in escalating destructive behavior toward Plaintiff's property and person. SAC ¶¶ 39-43; Lofall Decl. ¶¶ 27-34.

Specifically, on March 4, 2022, Macy allegedly broke windows in the basement area where Plaintiff was staying, sprayed water on his bed, electronics, computers, food, and tools, cut power to the area, and poured approximately 30 pounds of flour over his property. SAC ¶¶ 39-40; Lofall Decl. ¶¶ 28-29. Plaintiff called the West Linn Police Department (WLPD) to report this destruction, explicitly informing officers that Macy needed medical assistance. SAC ¶ 41; Lofall Decl. ¶ 30.

Despite these calls for assistance, WLPD officers, including Defendants Gunnarson and Blyth, allegedly failed to take any meaningful action to protect Plaintiff or his property over the course of three days. SAC ¶¶ 41, 43; Lofall Decl. ¶¶ 32-33. Disturbingly, the officers allegedly witnessed Macy's destructive behavior yet did nothing to intervene. Instead, according to Plaintiff, they appeared to coach Macy on how to circumvent proper eviction processes while she retained Plaintiff's car keys and critical work files. SAC ¶ 39; Lofall Decl. ¶ 28.

The situation escalated on March 6, 2022, when Macy allegedly continued her destructive behavior, including spraying Plaintiff with water from a hose. SAC ¶ 44; Lofall Decl. ¶ 34. After enduring this treatment, Plaintiff briefly took the hose from Macy and pointed it at the ground for approximately 15 seconds in an attempt to stop her actions. When this did not calm the situation, he released the hose and hammer she had been using, and she walked away. SAC ¶ 44; Lofall Decl. ¶ 34.

Shortly thereafter, Macy's daughter allegedly arrived and took a photograph. WLPD officers then responded to the scene. In what Plaintiff describes as a "rapid arrest" lasting only

seven to eight minutes from their arrival to his placement in a police vehicle, Officers Gunnarson and Blyth arrested Plaintiff. SAC ¶ 45; Lofall Decl. ¶ 48. This timeframe, Plaintiff contends, was drastically insufficient to conduct any meaningful investigation, especially given the complex situation and available exculpatory evidence. SAC ¶ 45, 85; Lofall Decl. ¶ 48.

Crucially, Plaintiff alleges that the officers had access to multiple pieces of exculpatory evidence that they willfully ignored, including:

1. Dispatch notes confirming multiple prior calls from Plaintiff reporting Macy's destructive behavior (SAC ¶ 43)

2. Physical evidence of broken windows and property damage (SAC ¶ 39)

3. Macy's possession of tools used for destruction (hammer, hose) (SAC ¶ 44)

4. Photographic evidence showing Macy with work gloves, a hammer, and a hose spraying inside the broken windows (SAC ¶ 47; Lofall Decl. ¶ 37)

Plaintiff contends that Officers Gunnarson and Blyth not only ignored this exculpatory evidence but actively conspired to manufacture charges against him. According to the SAC, Officer Blyth researched harassment requirements, found them unmet based on the facts, and then informed Officer Gunnarson that "another incident" was needed to support the charge. SAC ¶ 44; Lofall Decl. ¶ 44. Plaintiff alleges the officers then misrepresented facts provided by Macy to fabricate this "additional incident." SAC ¶ 45; Lofall Decl. ¶ 45.

In their reports, the officers allegedly used misleading language, such as claiming Plaintiff was at "his windows" when in fact Macy had broken the windows, and adding the word "only" to suggest Plaintiff released Macy "only" because her daughter took a picture—insinuating more nefarious intent. SAC ¶¶ 46-47; Lofall Decl. ¶¶ 46-47. Officers also allegedly falsely portrayed Plaintiff as unemployed (when he was trying to retrieve work files) and claimed he had a history of violence, which Plaintiff denies. SAC ¶ 53; Lofall Decl. ¶ 53.

Based on these allegedly false reports and manufactured evidence, Plaintiff was arrested for harassment and taken to the Clackamas County Jail. SAC ¶¶ 45, 54; Lofall Decl. ¶¶ 48-49.

Following his arrest, Plaintiff alleges he became the victim of malicious prosecution by Deputy District Attorney (DDA) Rebecca Portlock, who pursued charges despite mounting exculpatory evidence. SAC ¶¶ 59-64; Lofall Decl. ¶¶ 59-63.

Macy, the states own and only witness, previously had a history of mental health issues, making false statements about her ex-husband (being a pedophile), and was on a substance bender the week Plaintiff was arrested. She even was caught going into the court on March 7th for Plaintiffs arraignment with methamphetamine, and sent to the mental hospital three times this year by the defendants, had her children taken from her, and still was considered a reliable witness, even after Plaintiff offered to show video of Macy screaming like he was beating her when he was in the other room.

Plaintiff contends that the prosecution was continued even after Macy sought a waiver of the no-contact order and wrote letters supporting Plaintiff's release. SAC ¶ 60; Lofall Decl. ¶ 60. More significantly, Plaintiff alleges that on June 24, 2022, Macy—the prosecution's own witness—stated on the record that Plaintiff "broke no laws," directly contradicting the State's claims. SAC ¶ 78; Lofall Decl. ¶ 78.

Despite this recantation from the alleged victim, DDA Portlock allegedly did not immediately dismiss the charges. SAC ¶¶ 52, 63, 78-79; Lofall Decl. ¶¶ 56, 78-79. Instead, according to Plaintiff, DDA Portlock engaged in witness tampering by pressuring Macy regarding her child custody situation to the point where Macy felt compelled to leave the country. SAC ¶ 62; Lofall Decl. ¶ 62.

One of the most disturbing allegations involves a court appearance on June 10, 2022. Plaintiff alleges that DDA Portlock, Plaintiff's court-appointed advisor Rubin Medina, and Judge Steele colluded to falsely claim that Plaintiff had COVID-19 to delay his trial. SAC ¶ 73; Lofall Decl. ¶ 73. According to Plaintiff, as he entered the courtroom, he overheard someone say, "Get him out of here before the judge sees him." Despite being ready for trial, DDA Portlock allegedly falsely claimed Plaintiff had COVID-19, and Medina supported this claim by stating Plaintiff had tested positive on the previous two days—which Plaintiff asserts was untrue, as he had not tested positive since May 29th. SAC ¶ 73; Lofall Decl. ¶ 73.

The judge allegedly accepted these statements despite calling the two of them out on their lies that she confirmed with her own verification, delaying Plaintiff's trial for six weeks and

allowing the prosecution to add charges, including alleged violations of the no-contact order with Macy—who had herself bailed Plaintiff out. SAC ¶ 73; Lofall Decl. ¶ 73. This alleged collusion between a prosecutor, defense advisor, and judge, captured on court recording (See exhibit 1 attached to the SAC), would represent an extraordinary breach of judicial integrity.

Plaintiff also alleges that DDA Portlock suppressed exculpatory evidence, including body camera footage from West Linn officers that would have shown Macy's aggressive actions, moreover the officers misconduct. SAC ¶¶ 66, 88; Lofall Decl. ¶ 45. Plaintiff has sought this footage for over two years but alleges that the City of West Linn changed its policy specifically to block his access, and DDA Portlock hid the evidence behind DHS seal that she alone has authority to release and she denied 14 requests while Plaintiff was in jail. SAC ¶ 67; Lofall Decl. ¶ 71.

Eventually, after 129 days of incarceration, Plaintiff's case was dismissed. SAC ¶ 68; Lofall Decl. ¶ 80. Plaintiff alleges the state knew weeks or months before that they would not proceed to trial, yet kept him detained. SAC ¶ 65; Lofall Decl. ¶ 68.

During his incarceration at the Clackamas County Jail from March 6 to July 8, 2022, Plaintiff alleges he endured numerous constitutional violations related to his conditions of confinement. SAC ¶¶ 65-68, 72-74; Lofall Decl. ¶¶ 63-74.

Plaintiff, who is legally blind, alleges he was denied access to his prescription contact lenses and proper eyewear, effectively leaving him in darkness and unable to read or navigate his

surroundings. SAC ¶ 136; Lofall Decl. ¶ 68. This denial of medical accommodation for a serious disability allegedly persisted throughout his detention despite repeated requests. The denial of prescription eyewear to a legally blind detainee is particularly egregious as it impaired every aspect of Plaintiff's daily life and ability to participate in his defense.

Plaintiff alleges that jail staff deliberately placed him in a cell with an inmate who had COVID-19, causing Plaintiff to contract the virus. SAC ¶ 72; Lofall Decl. ¶ 72. Subsequently, when Plaintiff filed a grievance about this exposure, jail staff allegedly waited five weeks before dismissing it as Plaintiff merely being "unhappy." SAC ¶ 82; Lofall Decl. ¶ 82.

The timing of this COVID-19 infection is particularly suspicious given the allegedly false claims about Plaintiff's COVID status used to delay his trial. Plaintiff contends that after forcing him to contract COVID-19, jail staff then deleted his medical records documenting the illness. SAC ¶ 75; Lofall Decl. ¶ 68. However, they apparently forgot to delete the housing records, which show in a note that he contracted COVID at 3:00 a.m. on May 28th and wasn't moved until the afternoon of May 29th, 2022—an alleged deliberate indifference to his health during a known pandemic.

Plaintiff was also allegedly subjected to a pattern of retaliatory actions. After briefly being released on bail provided by Macy on May 10, 2022, Plaintiff was re-arrested approximately two weeks later on what he describes as a manufactured charge created on June 6, 2022—after his release but before the state's witness (Macy) publicly discredited DDA Portlock in court on June 24, 2022. SAC ¶ 73; Lofall Decl. ¶ 70.

Following his rearrest, Plaintiff alleges he was placed in retaliatory housing—first with a COVID-positive inmate, and then with someone facing assault charges against an officer, allegedly so he could then transmit the virus to that individual. SAC ¶ 72; Lofall Decl. ¶ 72. Plaintiff believes these placements were deliberate punishment for his legal advocacy.

Even after being moved in May 29th 2022, Plaintiff was then placed in a cell with a third person, here they had 8 bunks per pod where each inmate was supposed to have their own room to their selves due to covid 6' mandatory requirements. However the jail left rooms unoccupied undoubtedly so they can on paper claim they followed procedure. Again the Housing reports show the truth, when Lofall took his bedding walked down and went into an unoccupied cell and told the guard he didn't care what he had to say he was moving.

One of the most egregious allegations involves the deliberate destruction of Plaintiff's legal materials while in custody. On June 20, 2022, at approximately 5:10 PM during a dinner lockdown, Plaintiff alleges jail staff deleted 62 of his case files and trial preparation documents. SAC ¶ 74; Lofall Decl. ¶ 74. Plaintiff states he was able to access the deleted files using a CMD prompt and determined that only his files were selectively deleted by a guard.

This alleged destruction of legal materials came at a critical time—immediately after the court date was moved based on the alleged false COVID-19 claims, and shortly before Macy was scheduled to testify that Plaintiff "broke no laws" on June 24, 2022.

Additionally, Plaintiff alleges he was systematically denied access to the law library, sometimes for periods up to nine consecutive days. SAC ¶ 76; Lofall Decl. ¶ 76. In the week following the court delay and file deletion, Plaintiff was allegedly denied access for six consecutive days. SAC ¶ 76; Lofall Decl. ¶ 76. He was also denied a thumb drive on at least six occasions, further hindering his defense preparation. SAC ¶ 77; Lofall Decl. ¶ 77.

Plaintiff contends that his numerous requests for discovery while acting pro se were ignored—over 14 times by his count. SAC ¶ 67; Lofall Decl. ¶ 67. His legal filings and habeas corpus petitions were similarly disregarded, effectively cutting off his access to the courts. SAC ¶ 67; Lofall Decl. ¶ 67.

These alleged actions, if proven, would constitute serious violations of Plaintiff's constitutional right of access to the courts and right to prepare a defense. The timing and pattern suggest a coordinated effort to handicap Plaintiff's ability to defend himself at critical junctures in his case.

Perhaps most starkly illustrating the alleged disregard for Plaintiff's rights, he contends that on July 1, 2022, a court ordered his release, yet the Clackamas County Jail detained him for an additional week until July 8, 2022. SAC ¶ 81; Lofall Decl. ¶ 81.

During this period of allegedly unlawful detention, Plaintiff's requests for information about his status (known as "kites" in jail terminology) were ignored. SAC ¶ 81; Lofall Decl. ¶ 81.

Plaintiff later obtained records showing the jail had his release documents during this entire week-long period, yet kept him confined without legal justification. SAC ¶ 81; Lofall Decl. ¶ 81.

This additional week of detention without legal authorization, if proven, would represent a clear violation of Plaintiff's liberty interests protected by the Fourteenth Amendment. It also suggests a systemic breakdown in jail procedures or, more troublingly, deliberate indifference to court orders and inmates' rights.

The procedural path of Plaintiff's case provides important context for the current motions to dismiss. On November 18, 2022, Plaintiff initiated a civil action in Clackamas County Circuit Court (Case No. 22CV39627) against various defendants including West Linn Police Department, West Linn Police Department Officers Dana Gunnarson and Catlin Blyth, Clackamas County Police Department, Clackamas County John Doe Police Officers, County of Clackamas, Clackamas County Jail, and Rebecca Portlock. Lillegren Decl., Ex. 1, 4.

In that state court action, only the West Linn defendants appeared. Lillegren Decl., Ex. 5. The County defendants and Rebecca Portlock were dismissed for want of prosecution. Lillegren Decl., Ex. 2, 3. Plaintiff filed amended complaints, and the West Linn defendants filed motions to dismiss and for summary judgment. Lillegren Decl., Ex. 6, 7, 8, 9.

After over a year of what Plaintiff characterizes as delay tactics by West Linn, including scheduling the trial during Officer Blyth's paternity leave and rescheduling for Attorney Stabler's

vacation and subsequent paternity leave, a jury trial was scheduled for May 21, 2024. On May 20, 2024, Plaintiff filed a Notice of Removal to this Court, causing the trial to be canceled. Lillegren Decl., Ex. 10, 11. On June 4, 2024, this Court remanded the case back to state court. Lillegren Decl., Ex. 12.

Critically, on May 23, 2024 (the same day he filed the Notice of Removal), Plaintiff also initiated this new federal action. ECF No. 2. According to that original complaints (both where the same defendants and the same allegations besides the damages found later such as the collusion, the loss of the AOB, denial or court records), Plaintiff's claims were split as the state court had directed after the Clackamas County defendants failed to appear, and West Linn had filed numerous motions to split the case. Both state and federal cases consisted of the same underlying actions and included allegations regarding an arrest on May 24, 2022, theft of Plaintiff's vehicle and property, claims of double jeopardy, and assertions that no arrestable reason was shown until June 6 when Judge Wetzel reportedly signed documents giving the Defendants an excuse to have arrested plaintiff some two weeks prior, coinciding with Macy telling officials she was leaving the country after experiencing what Plaintiff characterizes as "child custody leverage." ECF No. 2, pp. 3-4.

On August 7, 2024, this Court adopted Magistrate Judge Beckerman's Findings and Recommendations and dismissed the complaint sua sponte, dismissing claims against the State of Oregon with prejudice due to Eleventh Amendment immunity, and dismissing claims against the remaining defendants without prejudice for failing to state a claim. ECF No. 12. The Court

authorized Plaintiff to amend his complaint concerning claims against Clackamas County, the Clackamas County Police Department, and John Doe Officers 1 and 2 within 30 days. ECF No. 12.

Plaintiff then filed his First Amended Complaint on September 9, 2024, and later sought leave to file a Second Amended Complaint, which he submitted on October 9, 2024. ECF Nos. 13, 17. The Second Amended Complaint expanded the factual allegations and legal claims, providing substantial detail about the events from March 2022 through July 2022. ECF No. 17-1.

Back in state court, on February 5, 2025 (the day they received written notice that the Federal Court was processing Plaintiff's case), the Clackamas County Circuit Court scheduled a jury trial for August 26, 2025. Lillegren Decl., Ex. 13. Eight days later, Plaintiff filed a motion to dismiss his state case without prejudice to pursue his claims in federal court with written permission from West Linn Defendants. Lillegren Decl., Ex. 14. On March 6, 2025, the state court entered a General Judgment of Dismissal, dismissing Plaintiff's claims without prejudice. Lillegren Decl., Ex. 15.

Defendants now seek dismissal of this federal action through three separate motions to dismiss. ECF Nos. 34, 36, 37.

III LEGAL STANDARD

A motion to dismiss under Rule 12(b)(6) tests the legal sufficiency of a complaint, not the merits of the case. To survive a motion to dismiss, a complaint must

> contain sufficient factual matter that, if accepted as true, states a claim for relief that is "plausible on its face." Bell Atlantic Corp. v. Twombly, 550 U.S. 544, 570 (2007). A claim is plausible when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged. Ashcroft v. Iqbal, 556 U.S. 662, 678 (2009).

The court must accept all well-pleaded factual allegations as true and draw all reasonable inferences in favor of the plaintiff. Daniels-Hall v. National Educ. Ass'n, 629 F.3d 992, 998 (9th Cir. 2010). However, "threadbare recitals of the elements of a cause of action, supported by mere conclusory statements, do not suffice." Iqbal, 556 U.S. at 678.

> Critically, when the plaintiff is proceeding pro se, the court applies less stringent standards and must liberally construe the complaint. Erickson v. Pardus, 551 U.S. 89, 94 (2007); Hebbe v. Pliler, 627 F.3d 338, 342 (9th Cir. 2010). The Ninth Circuit has explicitly confirmed that "this liberal interpretation of Rule 8(a) is 'particularly important in civil rights cases.'" Ferdik v. Bonzelet, 963 F.2d 1258, 1261 (9th Cir. 1992) (quoting Satchell v. Dilworth, 745 F.2d 781, 785 (2d Cir. 1984)). Additionally, the Ninth Circuit has emphasized that "we continue to construe pro se filings liberally" even after Twombly and Iqbal. Hebbe, 627 F.3d at 342.

This liberal construction means that "before dismissing a pro se complaint the district court must provide the litigant with notice of the deficiencies in his complaint" and "a pro se litigant is entitled to notice of the complaint's deficiencies and an opportunity to amend prior to dismissal of the action." Ferdik, 963 F.2d at 1261. Moreover, "a pro se complaint, 'however inartfully pleaded,' must be held to 'less stringent standards than formal pleadings drafted by lawyers.'" Estelle v. Gamble, 429 U.S. 97, 106 (1976) (quoting Haines v. Kerner, 404 U.S. 519, 520-21 (1972)). The Supreme Court has repeatedly emphasized that "the pleadings of pro se litigants [should] be held to less stringent standards than those drafted by lawyers, and all courts have recognized that the policy of liberal construction for pro se pleadings applies with particular

force to civil rights actions." Hernandez v. Daly, 378 F. App'x 623, 625 (9th Cir. 2010) (citing Johnson v. California, 207 F.3d 650, 653 (9th Cir. 2000)).

> Dismissal with prejudice is a severe remedy, particularly for pro se litigants, and is disfavored where defects in a complaint are curable by amendment. Lopez v. Smith, 203 F.3d 1122, 1127 (9th Cir. 2000) (en banc). Under Rule 15(a), leave to amend should be "freely given when justice so requires." Fed. R. Civ. P. 15(a); Foman v. Davis, 371 U.S. 178, 182 (1962).

In addition to the liberal standard accorded to pro se litigants generally, Plaintiff is entitled to additional accommodation as a person with a disability. Plaintiff has disclosed that he is legally blind, which substantially impacts his ability to navigate the legal system without assistance. Lofall Decl. ¶¶ 68-69; SAC ¶ 136.

> The Americans with Disabilities Act (ADA) and Section 504 of the Rehabilitation Act require reasonable accommodations for individuals with disabilities in accessing court services. Tennessee v. Lane, 541 U.S. 509, 533-34 (2004) (holding that Title II of the ADA validly abrogates state sovereign immunity regarding the fundamental right of access to courts). The Supreme Court has recognized that "Title II seeks to enforce a variety of... constitutional guarantees, including the right of access to the courts." Id. at 522-23. The Court emphasized that "a failure to accommodate persons with disabilities will often have the same practical effect as outright exclusion." Id. at 531.

The Ninth Circuit has similarly emphasized that courts must provide accommodations to ensure meaningful access to court proceedings for individuals with disabilities. See, e.g., Armstrong v. Davis, 275 F.3d 849, 862 (9th Cir. 2001) (affirming injunction requiring reasonable accommodations for disabled prisoners in parole hearings); Updike v. Multnomah Cnty., 870 F.3d 939, 949 (9th Cir. 2017) (holding that public entities must provide reasonable modifications to avoid discrimination against disabled individuals).

> In the context of evaluating a motion to dismiss against a visually impaired pro se litigant, these accommodation requirements take on special significance. Courts should recognize the extraordinary barriers faced by visually impaired pro se litigants in complying with technical procedural requirements and timelines. Cf. Keith v. Volpe, 858 F.2d 467, 476 (9th Cir. 1988) (noting that disability access is "linked to the right of access to the courts").

At minimum, these accommodation requirements should inform the Court's application of equitable doctrines such as tolling of limitations periods and liberal construction of pleadings. See Robles v. Domino's Pizza, LLC, 913 F.3d 898, 907 (9th Cir. 2019) ("[T]he purpose of the ADA is to provide 'broad mandates' to eliminate discrimination against disabled individuals, and to integrate them 'into the economic and social mainstream of American life.'") (citation omitted).

IV OPPOSITION TO WEST LINN DEFENDANTS (ECF 36)

Before addressing the specific arguments raised in Defendants' motions, it is essential to emphasize the overarching principle that should guide the Court's consideration: justice requires that these serious constitutional claims be heard on their merits rather than dismissed on procedural technicalities.

The Supreme Court has long recognized that "the basic purpose of the Federal Rules [of Civil Procedure] is to administer justice through fair trials on the merits." Surowitz v. Hilton Hotels Corp., 383 U.S. 363, 373 (1966). This principle takes on special force in civil rights cases, where "it is of the utmost importance that the law protective of constitutional liberties be applied with an even hand." Edwards v. City of Goldsboro, 178 F.3d 231, 242 (4th Cir. 1999).

The allegations in this case involve profound abuses of government power and multiple violations of fundamental constitutional rights—ranging from false arrest and malicious prosecution to cruel detention conditions and obstruction of access to courts. These are precisely the types of claims for which federal courts exist as a forum of last resort when state processes fail.

Recently, in Thompson v. Clark, 142 S. Ct. 1332 (2022), the Supreme Court emphasized that courts should not let "quirks of procedure" defeat potentially meritorious civil rights claims. Id. at 1341. The Court recognized that 42 U.S.C. § 1983 "exists to provide remedies for violations of constitutional rights," and procedural barriers should not unduly restrict that remedial purpose. Id.

To illustrate the gravity of the constitutional violations alleged, three examples stand out:

First, Plaintiff alleges that Officers Gunnarson and Blyth manufactured evidence to justify his arrest, conducting only an 8-minute "investigation" while ignoring dispatch logs, photographs, and physical evidence showing Macy as the aggressor. SAC ¶¶ 45, 85, 102; Lofall Decl. ¶ 48. Such deliberate fabrication of evidence to effect an arrest strikes at the heart of Fourth Amendment protections. See Galbraith v. County of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002) (holding that deliberate fabrication of evidence violates constitutional rights).

Second, Plaintiff alleges that DDA Portlock, Plaintiff's court-appointed advisor, and a judge conspired to falsely claim he had COVID-19 to delay his trial, as captured on court

recordings. SAC ¶ 73; Lofall Decl. ¶ 73. This alleged judicial corruption fundamentally undermines due process and the right to a fair trial. See United States v. Manton, 107 F.2d 834, 846 (2d Cir. 1939) ("If bribery of a judge is 'a crime of the gravest character,' forfeiting the office, the action of a judge in becoming a party to a plan of fraudulent conspiracy... is at least equally criminal.").

Third, Plaintiff alleges that Clackamas County Jail staff deliberately deleted 62 of his legal files while he was preparing his defense, systematically denied him law library access, and held him for a week after a court ordered his release. SAC ¶¶ 74, 76, 81; Lofall Decl. ¶¶ 74, 76, 81. These allegations, if proven, constitute egregious violations of the right of access to courts. See Bounds v. Smith, 430 U.S. 817, 828 (1977) (establishing the right of meaningful access to courts for prisoners).

Given these grave allegations implicating fundamental constitutional rights, the Court should err on the side of allowing full factual development rather than dismissal at the pleading stage.

Plaintiff is proceeding pro se with a significant visual disability. The Supreme Court has emphasized that courts should "strive to ensure that justice is achieved, including for pro se plaintiffs." Eldridge v. Block, 832 F.2d 1132, 1137 (9th Cir. 1987). His legal blindness compounds the already substantial challenges of navigating complex litigation without counsel. These circumstances warrant maximum procedural flexibility.

Courts have recognized that visual impairments present unique barriers to court access. In American Council of the Blind v. Paulson, 525 F.3d 1256, 1269 (D.C. Cir. 2008), the court noted that "the visually impaired simply do not have access to currency that is equally effective as that which the sighted have." Similarly, visually impaired pro se litigants do not have equal access to legal resources, research capabilities, or the ability to review documents.

The Ninth Circuit has emphasized that "pro se complaints are to be construed liberally, and may be dismissed only where 'it appears beyond doubt that the plaintiff can prove no set of facts in support of his claim which would entitle him to relief.'" Silva v. Di Vittorio, 658 F.3d 1090, 1101 (9th Cir. 2011) (quoting Haines v. Kerner, 404 U.S. 519, 520-21 (1972)). This standard is not met where, as here, Plaintiff has alleged multiple, specific constitutional violations with factual support.

> Furthermore, the ADA and the Rehabilitation Act require courts to provide reasonable accommodations to ensure that individuals with disabilities have meaningful access to court proceedings. Tennessee v. Lane, 541 U.S. at 533-34. One such accommodation in this context should be a more flexible application of procedural rules when strict application would effectively deny access to judicial remedies. See Updike v. Multnomah Cnty., 870 F.3d 939, 949 (9th Cir. 2017) (discussing modifications to policies, practices, and procedures required under the ADA).
>
> Many of the procedural issues Defendants now raise were allegedly created or exacerbated by their own conduct. Defendants cannot benefit from their own wrongdoing under the established maxim nemo judex in causa sua (no one should be a judge in their own cause). Glus v. Brooklyn Eastern District Terminal, 359 U.S. 231, 232-33 (1959) (no one may take advantage of his own wrong).

For example, Defendants allegedly concealed exculpatory evidence, destroyed legal documents, and manipulated proceedings—then seek dismissal based on timeliness and

procedural technicalities their own actions helped create. This behavior, if proven, would represent the epitome of unclean hands.

The Supreme Court has long recognized that a defendant's misconduct can prevent the assertion of defensive barriers like statutes of limitations. In Holmberg v. Armbrecht, 327 U.S. 392, 396 (1946), the Court held that "where a plaintiff has been injured by fraud and remains in ignorance of it without any fault or want of diligence or care on his part, the bar of the statute does not begin to run until the fraud is discovered."

Similarly, the Ninth Circuit has held that "a defendant cannot assert a statute of limitations defense if that defendant's own fraudulent conduct has caused the delay in bringing the action." Vernon v. Cassadaga Valley Cent. Sch. Dist., 49 F.3d 886, 891 (2d Cir. 1995); accord Estate of Amaro v. City of Oakland, 653 F.3d 808, 813 (9th Cir. 2011).

These principles of equity should guide the Court's consideration of the Defendants' motions, which essentially seek to profit from their own alleged misconduct by invoking strict procedural rules to avoid answering for the substantive constitutional violations alleged.

All three Defendants argue that Plaintiff's claims are barred by the two-year statute of limitations applicable to § 1983 claims in Oregon. This argument fails because multiple tolling doctrines preserve the timeliness of Plaintiff's claims given the extraordinary circumstances presented.

> Equitable tolling "permits a court to allow an action to proceed when justice requires it, even though a statutory time period has nominally elapsed." Jones v. Blanas, 393 F.3d 918, 928 (9th Cir. 2004). The doctrine applies when a plaintiff, despite exercising reasonable diligence, is prevented from timely filing due to extraordinary circumstances. Pace v. DiGuglielmo, 544 U.S. 408, 418 (2005).
>
> Federal courts apply the forum state's equitable tolling rules in § 1983 cases. Johnson v. State of California, 207 F.3d 650, 653 (9th Cir. 2000). While the Ninth Circuit has acknowledged that Oregon law regarding equitable tolling is not well-developed, it has applied equitable tolling principles in Oregon cases where justice requires. See, e.g., Socop-Gonzalez v. INS, 272 F.3d 1176, 1188-89 (9th Cir. 2001) (en banc).
>
> Several extraordinary circumstances justify equitable tolling in this case:

Plaintiff is legally blind, a fact that severely impedes his ability to navigate the legal system, especially as a pro se litigant. Courts have recognized that disabilities can justify tolling when they interfere with a plaintiff's ability to pursue claims. See Arctic Slope Native Ass'n v. Sebelius, 699 F.3d 1289, 1295 (Fed. Cir. 2012) (noting that physical disability can constitute extraordinary circumstances justifying equitable tolling); Canales v. Sullivan, 936 F.2d 755, 758 (2d Cir. 1991) (mental disability may justify equitable tolling).

> The Americans with Disabilities Act requires reasonable accommodation in accessing the courts. Tennessee v. Lane, 541 U.S. 509, 533-34 (2004). This principle should inform the application of equitable tolling to ensure that Plaintiff's visual impairment does not unfairly bar access to judicial remedies. In this case, Plaintiff's legal blindness made it extraordinarily difficult for him to research legal issues, draft documents, meet filing deadlines, and navigate court procedures without assistance.

In Galloway v. Warden, Case No. EDCV 08-1113-PSG (2009), the court applied equitable tolling where petitioner "established that his blindness, lack of legal and reading assistance, and lack of access to legal and other materials caused him to be unable to file his

federal petition" within the limitations period. Similarly, in Harden v. Rodriguez, 2021 WL 1210318, at *4 (S.D. Cal. Mar. 31, 2021), the court found equitable tolling appropriate where "petitioner's blindness, mental disorder, and limited education made it impossible for him to understand or assert his rights" within the limitations period.

For much of the relevant period, Plaintiff was incarcerated under conditions that severely restricted his ability to pursue legal claims. Courts have recognized that incarceration can present extraordinary obstacles justifying equitable tolling, especially when combined with other factors such as disability. See Brown v. Barrow, 512 F.3d 1304, 1307 (11th Cir. 2008) (recognizing that extraordinary circumstances might include combination of incarceration and other factors).

Plaintiff's incarceration was compounded by several aggravating factors that justify tolling:

1. Denial of law library access for extensive periods, sometimes up to nine consecutive days. SAC ¶ 76; Lofall Decl. ¶ 76.

2. Alleged deliberate deletion of 62 legal files necessary for his defense. SAC ¶ 74; Lofall Decl. ¶ 74.

3. Denial of assistive devices (thumb drives) necessary for legal work. SAC ¶ 77; Lofall Decl. ¶ 77.

4. Lack of accommodations for his visual disability while incarcerated. SAC ¶ 136; Lofall Decl. ¶ 68.

5. Detention beyond court-ordered release date. SAC ¶ 81; Lofall Decl. ¶ 81.

In Espinoza-Matthews v. California, 432 F.3d 1021, 1027-28 (9th Cir. 2005), the Ninth Circuit applied equitable tolling where a prisoner faced circumstances similar to Plaintiff's: restricted law library access, denial of his legal papers, and temporary placement in administrative segregation. The court emphasized that these "were 'extraordinary circumstances' beyond [petitioner's] control, making it impossible to file a petition on time." Id. at 1026.

Similarly, in Jones v. Blanas, 393 F.3d 918, 928 (9th Cir. 2004), the Ninth Circuit held that the statute of limitations for a civil detainee's § 1983 claims was tolled "while he was detained, and he was denied legal materials." The court noted that "equitable tolling is available in situations 'where the danger of prejudice to the defendant is absent, and the interests of justice so require.'" Id. (citation omitted).

Perhaps most significantly, Plaintiff alleges that Defendants actively obstructed his ability to pursue legal remedies through:

1. Concealment of exculpatory evidence, including body camera footage. SAC ¶¶ 51, 66, 88; Lofall Decl. ¶ 45.

2. Destruction of legal materials necessary to pursue claims. SAC ¶ 74; Lofall Decl. ¶ 74.

3. Denial of access to legal resources while incarcerated. SAC ¶ 76; Lofall Decl. ¶ 76.

4. Policy changes designed to prevent access to evidence (West Linn PD allegedly changing body camera access policy). SAC ¶ 67; Lofall Decl. ¶ 71.

The Supreme Court has emphasized that "a litigant will not be permitted to benefit from its own wrong." Glus v. Brooklyn Eastern District Terminal, 359 U.S. 231, 232-33 (1959). When defendants' own actions contribute to a plaintiff's inability to timely file, equitable tolling is particularly appropriate. See Doe v. Busby, 661 F.3d 1001, 1015-16 (9th Cir. 2011) (applying equitable tolling where authorities withheld evidence).

In Supermail Cargo, Inc. v. United States, 68 F.3d 1204, 1207 (9th Cir. 1995), the Ninth Circuit explained that "equitable tolling focuses on whether there was excusable delay by the plaintiff: If a reasonable plaintiff would not have known of the existence of a possible claim within the limitations period, then equitable tolling will serve to extend the statute of limitations for filing suit until the plaintiff can gather what information he needs." Here, Defendants' alleged concealment and obstruction prevented Plaintiff from timely discovering and pursuing his claims.

A central consideration in equitable tolling is whether the plaintiff diligently pursued his rights despite the obstacles faced. Holland v. Florida, 560 U.S. 631, 649 (2010). Here, Plaintiff demonstrated remarkable diligence by:

1. Timely filing a state court action in November 2022, within months of his release. Lillegren Decl., Ex. 1.

2. Actively litigating that case despite procedural obstacles. Lillegren Decl., Ex. 6, 7.

3. Turning to federal court only after experiencing what he reasonably perceived as systematic bias in state proceedings. ECF No. 2.

4. Promptly amending his federal complaint when directed by the Court. ECF Nos. 13, 17.

The Supreme Court has instructed that equitable tolling should apply when a litigant has been "pursuing his rights diligently" and "some extraordinary circumstance stood in his way." Pace, 544 U.S. at 418. Plaintiff's case presents precisely such a situation.

While Defendants argue that Oregon does not recognize equitable tolling, this position is not absolute. In Stevens v. Bispham, 316 Or. 221, 229-30 (1993), the Oregon Supreme Court recognized that a statute of limitations could be "suspended" for certain claims related to an underlying case. Similarly, in Doe v. Lake Oswego School District, 353 Or. 321, 342 (2013), the court recognized that "principles such as equitable tolling and equitable estoppel... may apply to prevent a statute of ultimate repose from barring a claim."

Moreover, ORS 12.160 provides for tolling the statute of limitations for individuals with mental disabilities, which courts have interpreted to include conditions affecting cognitive

function. While Plaintiff's disability is visual rather than cognitive, the statute reflects Oregon's recognition that certain disabilities warrant limitations tolling as a matter of policy.

However in the June 1st 2022 court appearance it was claimed that Plaintiff had a mental disability. Plaintiff disagrees, although this adds another layer where the defendants had to either A. been convinced of this handicap and Plaintiff should receive additional time, or B. Commenced ANOTHER fraud upon the court and Plaintiff should receive additional time.

Additionally, Oregon law provides that the limitations period may be tolled for up to 90 days when a disability prevents filing. ORS 12.160; Johnson v. Mult. Co. Dept. of Comm. Justice, 344 Or. 111, 118-19 (2008). Given Plaintiff's blindness and incarceration, this statutory tolling alone would extend the limitations period by three months, bringing his claims within the statute of limitations.

The combination of Plaintiff's disability, incarceration barriers, active obstruction by Defendants, and his diligent pursuit of his rights despite these obstacles provides compelling grounds for equitable tolling. Justice demands that limitations periods should not be mechanically applied when extraordinary circumstances—many allegedly created by Defendants themselves—prevented timely filing.

The fraudulent concealment doctrine provides that "a defendant's fraudulent concealment or misrepresentation may toll the statute of limitations until the plaintiff discovers, or has reason to discover, the cause of action." Hexcel Corp. v. Ineos Polymers, Inc., 681 F.3d 1055, 1060 (9th

Cir. 2012). The doctrine applies when "(1) the defendant takes active steps to prevent the plaintiff from suing in time, or (2) the defendant engages in inherently self-concealing conduct." In re Animation Workers Antitrust Litig., 123 F. Supp. 3d 1175, 1194 (N.D. Cal. 2015).

Plaintiff's allegations raise multiple instances of fraudulent concealment by Defendants:

Plaintiff alleges that West Linn Police Department officers withheld critical body camera footage that would have shown Macy's aggressive actions and vindicated Plaintiff's account. SAC ¶¶ 51, 66, 88; Lofall Decl. ¶ 45. Plaintiff has sought this footage for over two years, but alleges the Department changed its policy specifically to prevent his access. SAC ¶ 67; Lofall Decl. ¶ 71.

Courts have recognized that withholding exculpatory evidence constitutes fraudulent concealment that tolls the statute of limitations. See Varnell v. Dora Consol. Sch. Dist., 756 F.3d 1208, 1213 (10th Cir. 2014) (concealment of critical evidence can toll statute of limitations); Jay E. Hayden Found. v. First Neighbor Bank, N.A., 610 F.3d 382, 385 (7th Cir. 2010) ("[C]oncealment of a fraud tolls the statute of limitations.").

The Ninth Circuit has specifically held that concealment of evidence can toll the statute of limitations in § 1983 cases. In Lukovsky v. City & County of San Francisco, 535 F.3d 1044, 1051-52 (9th Cir. 2008), the court explained that "under the federal discovery rule, a claim accrues—and the statute of limitations begins to run—when the plaintiff knows or has reason to know of the injury, which is at the time the plaintiff 'knows both the existence and the cause of

his injury.'" When defendants conceal the cause of injury, the limitations period is tolled until discovery.

Plaintiff alleges that Officers Gunnarson and Blyth fabricated evidence and misrepresented facts in police reports to manufacture charges against him. SAC ¶¶ 45-47; Lofall Decl. ¶¶ 45-47. He contends they used misleading language and omitted exculpatory information to create a false impression of his culpability.

Fabrication of evidence has been recognized as a form of fraudulent concealment that tolls the limitations period. See Pearl v. City of Long Beach, 296 F.3d 76, 80-84 (2d Cir. 2002) (concealment of fabrication of evidence can toll limitations period); Jay E. Hayden Found., 610 F.3d at 385-86 (discussing when concealment of fraud tolls limitations).

In Rosales-Martinez v. Palmer, 753 F.3d 890, 896 (9th Cir. 2014), the Ninth Circuit recognized that "active misleading by state officials" about the nature of events "is grounds for equitable tolling." Similarly, in Grimmett v. Brown, 75 F.3d 506, 514 (9th Cir. 1996), the court held that fraudulent concealment tolls the statute of limitations when "(1) the defendant has concealed the existence of the cause of action, and (2) the plaintiff would not have discovered the cause of action despite exercising reasonable diligence."

Plaintiff alleges jail staff deleted his medical records documenting his COVID-19 illness (SAC ¶ 75; Lofall Decl. ¶ 68) and deliberately deleted 62 of his legal files (SAC ¶ 74; Lofall

Decl. ¶ 74). These actions, if proven, would constitute active concealment of evidence relevant to his claims.

The destruction of records that would support a plaintiff's claims has been recognized as a basis for tolling limitations periods. See Cada v. Baxter Healthcare Corp., 920 F.2d 446, 451 (7th Cir. 1990) (discussing active concealment of information that would support a plaintiff's suit).

In Bibeau v. Pac. Northwest Research Found. Inc., a case also involving document destruction, the Ninth Circuit held that "[t]he doctrine of fraudulent concealment is invoked by showing that the defendant fraudulently concealed facts giving rise to the plaintiff's claim, which prevented the plaintiff, despite the exercise of due diligence, from discovering the claim until after the expiration of the statute of limitations." 188 F.3d 1105, 1108 (9th Cir. 1999). The court explained that "wrongful concealment is analytically similar to fraudulent concealment" for tolling purposes.

Plaintiff alleges that DDA Portlock and others made false representations in court proceedings, including falsely claiming he had COVID-19 to delay his trial. SAC ¶ 73; Lofall Decl. ¶ 73. These alleged misrepresentations in judicial proceedings concealed the true nature of the prosecution's conduct.

Misrepresentations in judicial proceedings can constitute fraudulent concealment that tolls limitations periods. See SEC v. Gabelli, 653 F.3d 49, 59-60 (2d Cir. 2011) (fraudulent

concealment applies when defendant takes affirmative steps to prevent discovery), rev'd on other grounds, 568 U.S. 442 (2013).

> The fraudulent concealment doctrine provides that a defendant who conceals information necessary for a plaintiff to know that he has been harmed cannot benefit from that concealment by asserting a statute of limitations defense. Holmberg v. Armbrecht, 327 U.S. 392, 396-97 (1946) ("Where a plaintiff has been injured by fraud and remains in ignorance of it without any fault or want of diligence or care on his part, the bar of the statute does not begin to run until the fraud is discovered."). Estate of Amaro v. City of Oakland, 653 F.3d 808, 813 (9th Cir. 2011) (fraudulent concealment).

This doctrine has particular force in § 1983 cases involving governmental misconduct. See Pearl, 296 F.3d at 82-83 (recognizing application of fraudulent concealment to § 1983 claims). The doctrine is rooted in the fundamental principle that "no man may take advantage of his own wrong." Glus, 359 U.S. at 232-33.

In this case, the alleged concealment and misrepresentation by Defendants effectively prevented Plaintiff from fully understanding the scope of his injuries and the basis for his claims until much later. This ongoing concealment justifies tolling the limitations period.

> The continuing violation doctrine provides that when a defendant's conduct forms part of a continuing practice, the statute of limitations may be tolled for all actions so long as the last act evidencing the continuing practice falls within the limitations period. Brenner v. Local 514, United Bhd. of Carpenters & Joiners of Am., 927 F.2d 1283, 1295 (3d Cir. 1991).
>
> In the Ninth Circuit, the continuing violation doctrine applies to § 1983 cases where there is either: (1) a series of related acts, one or more of which falls within the limitations period; or (2) the maintenance of a discriminatory system that includes conduct within the limitations period. Douglas v. Cal. Dep't of Youth Auth., 271 F.3d 812, 822 (9th Cir. 2001); RK Ventures, Inc. v. City of Seattle, 307 F.3d 1045, 1061 (9th Cir. 2002).

Plaintiff's allegations present a textbook case for applying the continuing violation doctrine:

Plaintiff alleges a connected series of constitutional violations spanning from his false arrest on March 6, 2022, through his unlawful detention beyond his court-ordered release date in July 2022, and continuing through the defendants' ongoing concealment of evidence and obstruction of his access to legal remedies. SAC ¶¶ 37-81; Lofall Decl. ¶¶ 27-82.

These violations are not isolated incidents but part of an integrated pattern of misconduct involving:

1. Initial false arrest based on fabricated evidence (March 6, 2022)

2. Malicious prosecution despite exculpatory evidence (March-July 2022)

3. Inhumane conditions of confinement (March-July 2022)

4. Destruction of legal materials (June 20, 2022)

5. Denial of law library access (throughout detention)

6. Detention beyond court-ordered release (July 1-8, 2022)

7. Clackamas County Denial of showing up in court (Spring 2023)

8. Ongoing concealment of evidence (continuing through 2024)

9. Repeated Postponement of State Case claims (2024)

10. Loss of AOB rights (not matured until 2024)

11. Finding of the corruption on Court Listener (April 2024)

Courts have recognized that such connected series of violations can constitute a continuing violation for limitations purposes. See, e.g., Gutowsky v. County of Placer, 108 F.3d 256, 259-60 (9th Cir. 1997) (series of related discriminatory acts constituted continuing violation); Heard v. Sheahan, 253 F.3d 316, 320 (7th Cir. 2001) (continuous refusal to treat prisoner's condition was continuing violation).

In Flowers v. Carville, 310 F.3d 1118, 1126 (9th Cir. 2002), the Ninth Circuit held that "the statute of limitations does not begin to run until the last act in furtherance of the conspiracy." Similarly, in Nat'l R.R. Passenger Corp. v. Morgan, 536 U.S. 101, 117 (2002), the Supreme Court recognized that "[p]rovided that an act contributing to the claim occurs within the filing period, the entire time period of the hostile environment may be considered by a court for the purposes of determining liability."

Several alleged violations had continuing effects that persisted into the limitations period. For example, the alleged deletion of Plaintiff's legal files (SAC ¶ 74; Lofall Decl. ¶ 74) and

concealment of body camera footage (SAC ¶¶ 51, 66, 67, 88; Lofall Decl. ¶¶ 45, 71) created ongoing obstacles to Plaintiff's ability to pursue legal remedies.

Courts have recognized that when the effects of initial violations continue into the limitations period, the continuing violation doctrine may apply. See, e.g., Williams v. Owens-Illinois, Inc., 665 F.2d 918, 924 (9th Cir. 1982) (continuing effects of earlier violations may be relevant to proving violations within limitations period).

In Barreto-Rivera v. Medina-Vargas, 168 F.3d 42, 47 (1st Cir. 1999), the court explained that "a continuing violation may be established by a showing of a series of related acts against a single individual... that demonstrates that the defendant had adopted a policy or engaged in a practice of harassment." The alleged continuous pattern of misconduct against Plaintiff from his arrest through his prolonged detention and the ongoing concealment of evidence fits this paradigm.

Plaintiff alleges systemic policies and practices across multiple agencies within Clackamas County's justice system, including:

1. WLPD policies regarding body camera footage access (SAC ¶ 67; Lofall Decl. ¶ 71)

2. County Jail practices regarding law library access (SAC ¶ 76; Lofall Decl. ¶ 76)

3. Prosecutor's office practices regarding dismissal of charges despite exculpatory evidence (SAC ¶¶ 52, 63, 89, 111; Lofall Decl. ¶¶ 56, 63, 78-79)

The maintenance of such systemic policies into the limitations period can constitute a continuing violation. See Green v. Los Angeles County Superintendent of Schools, 883 F.2d 1472, 1480-81 (9th Cir. 1989) (maintenance of discriminatory system into limitations period can constitute continuing violation).

In O'Rourke v. City of Providence, 235 F.3d 713, 731 (1st Cir. 2001), the court explained that "the continuing violation doctrine ensures that Title VII claims are not foreclosed where the latest incident... stems from a common discriminatory animus and scheme that includes earlier conduct as well." By analogy, where ongoing systemic policies and practices share a common constitutional rights animus as earlier conduct, the continuing violation doctrine should apply in the § 1983 context.

Plaintiff alleges ongoing concealment of evidence and obstruction by Defendants, including West Linn's policy change regarding body camera footage (SAC ¶ 67; Lofall Decl. ¶ 71) and continuous denial of access to critical evidence. This ongoing concealment continued well into the limitations period.

Courts have recognized that ongoing concealment can constitute a continuing violation. See Taylor v. Meirick, 712 F.2d 1112, 1119 (7th Cir. 1983) (continuing wrong can "deflect or deter" plaintiff from bringing suit).

The continuing violation doctrine is particularly appropriate in this case because the alleged constitutional violations were not discrete, isolated incidents but part of an integrated

pattern of misconduct spanning multiple months and involving multiple agencies within Clackamas County's justice system. As the Supreme Court noted in Havens Realty Corp. v. Coleman, 455 U.S. 363, 380-81 (1982), where "a continuing violation is alleged, a plaintiff... may assert all [related] violations, so long as the defendant... engaged in at least one... violation during the limitations period."

The alleged ongoing concealment of evidence, maintenance of unconstitutional policies, and continuing effects of the initial violations bring Plaintiff's claims within the continuing violation doctrine, preserving their timeliness.

Federal Rule of Civil Procedure 15(c) provides for the relation back of amendments to the original filing date when the amendment "asserts a claim or defense that arose out of the conduct, transaction, or occurrence set out—or attempted to be set out—in the original pleading." Fed. R. Civ. P. 15(c)(1)(B). When adding a new party, relation back is permitted when, in addition to the above requirement, the party to be added "(i) received such notice of the action that it will not be prejudiced in defending on the merits; and (ii) knew or should have known that the action would have been brought against it, but for a mistake concerning the proper party's identity." Fed. R. Civ. P. 15(c)(1)(C).

The relation back doctrine should preserve the timeliness of Plaintiff's claims for several reasons:

Plaintiff initiated this federal action on May 23, 2024 (ECF No. 2), within two years of several key incidents alleged in the SAC, including his detention beyond court-ordered release date in July 2022. The original complaint, though focused on a May 24, 2022 arrest, involved the same general course of events and many of the same parties as the SAC.

While the West Linn Defendants argue that the amendments assert entirely new claims, both the original complaint and the amendments concern alleged misconduct by law enforcement officers in Clackamas County during roughly the same timeframe in 2022. The core conduct at issue—abuse of authority by law enforcement and prosecutors—remains consistent across the pleadings.

The relation back doctrine is applied liberally, particularly for pro se plaintiffs, to facilitate decisions on the merits rather than technicalities. See Santamarina v. Sears, Roebuck & Co., 466 F.3d 570, 573 (7th Cir. 2006) (relation back rule is "to be liberally applied").

In ASARCO, LLC v. Union Pac. R. Co., 765 F.3d 999, 1004 (9th Cir. 2014), the Ninth Circuit emphasized that "the linchpin of Rule 15(c) is notice" and relation back should be permitted where "the defendant is not prejudiced in preparing its defense." Here, Defendants had ample notice of these claims through state court proceedings and would suffer no prejudice from relation back.

The County Defendants had notice of Plaintiff's claims through the state court proceedings initiated in November 2022. Lillegren Decl., Ex. 1, 4. Similarly, the West Linn

Defendants were actively litigating the state court case concerning the same events. Lillegren Decl., Ex. 5, 6, 7, 8, 9.

Given this prior litigation history, all Defendants "knew or should have known that the action would have been brought against [them]" in the federal case, satisfying Rule 15(c)(1)(C)(ii). The Defendants cannot credibly claim prejudice or surprise regarding these claims, which they have been litigating in some form since 2022.

In Krupski v. Costa Crociere S.p.A., 560 U.S. 538, 550 (2010), the Supreme Court emphasized that the relation back inquiry should focus on "what the prospective defendant knew or should have known during the Rule 4(m) period, not what the plaintiff knew or should have known at the time of filing her original complaint." Here, Defendants unquestionably knew of Plaintiff's claims through parallel state court proceedings.

Courts apply the relation back doctrine particularly liberally for pro se plaintiffs. See, e.g., Donald v. Cook County Sheriff's Dep't, 95 F.3d 548, 557 (7th Cir. 1996) (courts should "apply Rule 15(c) liberally when the plaintiff is pro se").

Plaintiff's pro se status, combined with his visual disability, provides strong grounds for liberal application of the relation back doctrine. Any technical deficiencies in his original complaint should be viewed in light of these circumstances.

In Jackson v. Kotter, 541 F.3d 688, 696 (7th Cir. 2008), the court explained that "there is a more liberal application of Rule 15(c)(3) when the plaintiff is pro se than when plaintiff has

legal representation," and emphasized that "courts should apply the relation back doctrine liberally to ensure that pro se plaintiffs do not unnecessarily have their claims dismissed on technicalities."

The "interest of justice" standard that guides application of Rule 15(c) strongly favors relation back in this case. As the Supreme Court emphasized in Krupski v. Costa Crociere S.p.A., 560 U.S. 538, 550 (2010), the relation back doctrine's purpose is to "balance the interests of the defendant protected by the statute of limitations with the preference expressed in the Federal Rules of Civil Procedure in general, and Rule 15 in particular, for resolving disputes on their merits."

Here, the balance of interests strongly favors reaching the merits of Plaintiff's serious constitutional claims rather than dismissing them on technical grounds, particularly given Defendants' prior notice of the claims through state court proceedings.

The relation back doctrine exists precisely to prevent the unjust forfeiture of claims due to technical errors or confusion about proper parties—circumstances especially likely to affect pro se litigants with disabilities. Liberal application of this doctrine serves the fundamental purpose of the Federal Rules to facilitate just resolution of disputes on their merits.

> The discovery rule provides that a claim accrues when the plaintiff knows or has reason to know of the injury and its cause. Pouncil v. Tilton, 704 F.3d 568, 574 (9th Cir. 2012). In the context of § 1983 claims, "a claim accrues when the plaintiff knows or should know of the injury that is the basis of the action and the cause of that injury." Trejo v. County of Los Angeles, 50 F. App'x 855, 856 (9th Cir. 2002).

Plaintiff alleges that critical aspects of his claims did not become known to him until Spring 2024, when he discovered evidence of systemic misconduct and a broader conspiracy against him. SAC ¶ 4, p. 9; Plaintiff's Statement in User Prompt.

Several aspects of Plaintiff's injuries were allegedly unknown to him until recently:

Plaintiff alleges he did not understand the full scope and interconnection of the constitutional violations until Spring 2024, when he discovered evidence suggesting a broader conspiracy involving multiple agencies. This includes alleged on-camera evidence of misconduct by the DDA, judge, and counsel. SAC ¶¶ 62, 64, 90, pp. 32-33, 34, 45.

Courts have recognized that the discovery rule applies to conspiracy claims where the full scope of the conspiracy was not apparent earlier. See Hexcel Corp., 681 F.3d at 1060 (discovery rule applies when plaintiff has neither actual nor constructive knowledge of the facts giving rise to the claim).

In Mangum v. Action Collection Serv., Inc., 575 F.3d 935, 940 (9th Cir. 2009), the court held that "[a] federal claim accrues when the plaintiff knows or has reason to know of the actual injury" (emphasis added). Until Plaintiff discovered the interconnected nature of the defendants' actions, he could not know the "actual injury" or its full scope.

Plaintiff alleges he did not fully realize the impact of Defendants' actions on his separate civil claims (the loss of the $32k counterclaim and $111k assignment of benefits) until around May 2024. SAC pp. 84-86.

Courts have recognized that claims may not accrue until the plaintiff discovers the full extent of their damages. See Doe v. United States, 51 F. Supp. 3d 1290, 1294 (D. Utah 2014) (claim did not accrue until plaintiff discovered full extent of injury).

In Two Rivers v. Lewis, 174 F.3d 987, 991-92 (9th Cir. 1999), the court noted that under the discovery rule, a § 1983 claim accrues when the plaintiff "knows or has reason to know of the actual injury on which the claim is based." Plaintiff maintains he did not fully understand the extent of actual injury to his civil claims until Spring 2024.

Plaintiff alleges it was not until Spring 2024 that he discovered evidence of systematic obstruction of justice, including the context of a Clackamas County Commissioner imprisoned for fraud, and evidence of alleged weaponization of the FOIA process. Plaintiff's Statement in User Prompt; SAC ¶ 4, p. 9.

Courts have recognized that claims may not accrue until the plaintiff discovers evidence of systemic misconduct. See, e.g., Kelly v. City of Chicago, 4 F.3d 509, 511 (7th Cir. 1993) (discussing application of discovery rule to knowledge of municipal liability).

Under the discovery rule, "the statute of limitations... begins to run when the plaintiff knew or should have known of the injury that forms the basis of his cause of action." Ward v. Westinghouse Can., Inc., 32 F.3d 1405, 1407 (9th Cir. 1994). In cases involving concealment or complex factual scenarios, the full basis for a claim may not be apparent until well after the initial injury.

Plaintiff's allegations suggest that critical aspects of his claims—particularly the systematic nature of the misconduct and the full extent of his damages—were not reasonably discoverable until Spring 2024, despite his diligent efforts to uncover the truth. Under these circumstances, the discovery rule would delay the accrual of at least some aspects of his claims until that time, preserving their timeliness.

The various tolling doctrines—equitable tolling, fraudulent concealment, continuing violations, relation back, and the discovery rule—work in concert to preserve the timeliness of Plaintiff's claims given the extraordinary circumstances he faced. Justice demands that these doctrines be applied to allow consideration of his serious constitutional claims on their merits.

V OPPOSITION TO DDA PORTLOCK (ECF 37)

DDA Portlock argues she is protected from Plaintiff's claims by the doctrine of absolute prosecutorial immunity. This argument fails because her alleged conduct falls outside the scope of protected prosecutorial functions.

Prosecutorial immunity is not absolute for all actions taken by prosecutors; it applies only to activities "intimately associated with the judicial phase of the criminal process." Imbler v. Pachtman, 424 U.S. 409, 430 (1976). The Supreme Court has emphasized that "the actions of a prosecutor are not absolutely immune merely because they are performed by a prosecutor." Buckley v. Fitzsimmons, 509 U.S. 259, 273 (1993).

Courts apply a "functional approach" to determine whether particular actions qualify for absolute immunity, focusing on "the nature of the function performed, not the identity of the actor who performed it." Id. at 269. Under this approach, prosecutors receive absolute immunity when functioning as advocates, but not when functioning as investigators, administrators, persecutors, extortionists, or ordinary citizens. Id. at 273.

Several of DDA Portlock's alleged actions fall outside the scope of protected prosecutorial functions:

Plaintiff alleges DDA Portlock colluded with Plaintiff's court-appointed advisor and Judge Steele to falsely claim that Plaintiff had COVID-19 to delay his trial. SAC ¶ 73; Lofall

Decl. ¶ 73. This alleged fabrication of medical evidence is not a prosecutorial function but rather misconduct aimed at manipulating court proceedings.

Courts have recognized that fabrication of evidence falls outside the scope of prosecutorial immunity. See Milstein v. Cooley, 257 F.3d 1004, 1011 (9th Cir. 2001) (fabricating evidence during the preliminary investigation of a crime not protected); Buckley, 509 U.S. at 274 (fabricating evidence not protected). While DDA Portlock's alleged fabrication occurred during rather than before proceedings, the principle remains the same: fabrication of evidence is not a protected prosecutorial function.

In Koubriti v. Convertino, 593 F.3d 459, 467 (6th Cir. 2010), the court held that "even after probable cause exists to prosecute a defendant... a prosecutor's manipulation of evidence constitutes a constitutional violation" that is not protected by absolute immunity. Similarly, DDA Portlock's alleged fabrication of COVID-19 status information would not be protected.

Plaintiff alleges DDA Portlock engaged in witness tampering by pressuring Macy regarding her child custody situation, compelling her to leave the country. SAC ¶ 62; Lofall Decl. ¶ 62. Coercing witnesses through pressure about personal matters unrelated to the case is not a protected prosecutorial function.

Courts have recognized that coercion and intimidation of witnesses fall outside the scope of prosecutorial immunity. See Milstein, 257 F.3d at 1011 (intimidating witnesses not protected);

Genzler v. Longanbach, 410 F.3d 630, 636-44 (9th Cir. 2005) ("pre-trial witness coaching" not protected).

In Burns v. Reed, 500 U.S. 478, 493 (1991), the Supreme Court emphasized that "it is incongruous to allow prosecutors to be absolutely immune from liability for giving advice to the police, but to allow police officers only qualified immunity for following the advice." By analogy, it would be incongruous to grant a prosecutor absolute immunity for witness tampering when police officers would receive only qualified immunity for the same conduct

This same method of thinking should be looked at one step further here, anyone else who is colluding with a judiciary, crafting lies on the record keeping someone jailed would be guilty of criminal charges, moreover those charges increase when you add anyone of the three duties the following three had owed the Plaintiff.

Plaintiff alleges DDA Portlock engaged in ex parte communications with the court regarding his alleged COVID-19 status. SAC ¶ 73; Lofall Decl. ¶ 73. Ex parte communications with the court on substantive matters are not protected prosecutorial functions.

Courts have recognized that ex parte communications may fall outside the scope of prosecutorial immunity when they involve improper influence. See Houston v. Partee, 978 F.2d 362, 368 (7th Cir. 1992) (ex parte communications to present false evidence not protected); Harlow v. Fitzgerald, 457 U.S. 800, 819 (1982) (officials who "knowingly violate the law" not protected).

In Moore v. Valder, 65 F.3d 189, 195 (D.C. Cir. 1995), the court held that "intimidating witnesses, falsifying evidence, and talking to the press constituted conduct that was beyond the scope of a prosecutor's role as an advocate." Similarly, DDA Portlock's alleged ex parte communications to present false information would be beyond the scope of her role as an advocate.

Plaintiff alleges DDA Portlock continued the prosecution despite Macy's statement on the record on June 24, 2022, that Plaintiff "broke no laws." SAC ¶ 78; Lofall Decl. ¶ 78. While prosecutors generally have discretion regarding whether to pursue charges, continuing a prosecution with knowledge that the alleged victim has never stated any laws that were broken and the defendant is innocent should fall outside protected functions. The clarity here really comes into focus when the '*Information'* Plaintiff Was arrested on is looked at with a closer look; here there was an asterisk used as a wild card Plaintiff has alleged since day one was because there was no evidence of any crime, yet week after week they pushed for claims with out even a statement of a crime.

Courts have suggested that prosecutorial immunity may not extend to situations where a prosecutor continues a prosecution despite clear evidence of innocence. See Yarris v. County of Delaware, 465 F.3d 129, 136-37 (3d Cir. 2006) (discussing limits of immunity for continuing prosecution despite clear evidence of innocence); Jones v. Shankland, 800 F.2d 77, 80 (6th Cir. 1986) (suggesting that knowingly using false testimony to obtain a conviction is not protected).

These alleged actions—falsifying Plaintiff's COVID-19 status, tampering with witnesses, engaging in ex parte communications, and continuing prosecution despite known innocence—fall outside the scope of protected prosecutorial functions. They are not activities "intimately associated with the judicial phase of the criminal process" but rather alleged misconduct designed to manipulate and corrupt that process. Imbler, 424 U.S. at 430.

Prosecutors lose their absolute immunity when they conspire with others to violate constitutional rights. The alleged conspiracy between DDA Portlock, Plaintiff's court-appointed advisor, and Judge Steele (SAC ¶ 73; Lofall Decl. ¶ 73) takes her conduct outside the scope of protected prosecutorial functions.

While the Supreme Court has not definitively addressed whether conspiracy allegations defeat prosecutorial immunity, several circuits have recognized that conspiracy claims may proceed against prosecutors despite immunity. See, e.g., Rose v. Bartle, 871 F.2d 331, 352 (3d Cir. 1989) (conspiracy allegations sufficed to defeat prosecutorial immunity at pleading stage); San Filippo v. U.S. Trust Co. of N.Y., 737 F.2d 246, 255 (2d Cir. 1984) (same).

The rationale is that when prosecutors conspire with others, they step outside their quasi-judicial role and engage in conduct that is not "intimately associated with the judicial phase of the criminal process." Imbler, 424 U.S. at 430.

In San Filippo, 737 F.2d at 255, the court explained that "where prosecutors act in concert with other individuals to deprive a person of his constitutional rights... an action for

damages under § 1983 against the prosecutors must be permitted." This reasoning recognizes that conspiracy by its nature takes prosecutors outside their proper role.

Plaintiff alleges a particularly egregious conspiracy: DDA Portlock allegedly colluded with Plaintiff's own court-appointed advisor and Judge Steele to falsely claim he had COVID-19 to delay his trial. SAC ¶ 73; Lofall Decl. ¶ 73. This alleged conspiracy involves not just any third parties, but actors with direct duties to Plaintiff (his advisor) and to the fair administration of justice (the judge).

Such a conspiracy, caught on court listener video, would constitute a profound corruption of the judicial process—the very process prosecutorial immunity is designed to protect. When a prosecutor allegedly conspires to corrupt rather than serve the judicial process, immunity should not apply. See Snelling v. Westhoff, 972 F.2d 199, 200-01 (8th Cir. 1992) (conspiracy allegations may defeat prosecutorial immunity).

In Malley v. Briggs, 475 U.S. 335, 343 (1986), the Supreme Court emphasized that the purpose of immunity is to protect the judicial process, not to "place... prosecutor[s] beyond the law." A conspiracy to corrupt the judicial process cannot be protected by immunity designed to safeguard that very process.

The conspiracy alleged here involved fabrication of evidence—specifically, false claims about Plaintiff's COVID-19 status. SAC ¶ 73; Lofall Decl. ¶ 73. As discussed above, fabrication

of evidence is not a protected prosecutorial function. Buckley, 509 U.S. at 274. A conspiracy to fabricate evidence similarly falls outside protected functions.

This is particularly true when the fabrication allegedly occurred through ex parte communications with the court, circumventing proper adversarial testing of evidence. Houston v. Partee, 978 F.2d at 368 (ex parte communications to present false evidence not protected).

In Zahrey v. Coffey, 221 F.3d 342, 353 (2d Cir. 2000), the court recognized that a prosecutor's alleged involvement in evidence fabrication took the conduct outside the scope of protected functions, particularly when the fabrication was alleged to have been "a cause of the chain of events that ultimately deprived [the plaintiff] of his liberty."

The alleged conspiracy between DDA Portlock, Plaintiff's court-appointed advisor, and Judge Steele takes her conduct outside the scope of protected prosecutorial functions. Such a conspiracy, undeniable, as its evidence was caught by court listener, represents illegitimate advocacy and corruption of the judicial process.

VI OPPOSITION TO COUNTY DEFENDANTS (ECF 34)

Defendants argue that Plaintiff's First and Second Amended Complaints violate the Court's August 7, 2024 Order (ECF No. 12), which granted leave to "amend the claims against Clackamas County, the Clackamas County Police Department, and John Doe Officers 1 and 2 within 30 days." Defendants contend that Plaintiff exceeded this authorization by naming additional defendants, including the West Linn Defendants and DDA Portlock, and by filing the First Amended Complaint the next court day after the deadline.

These arguments elevate form over substance and disregard the Court's broad discretion to permit amendments in the interest of justice, particularly for pro se litigants with disabilities.

Federal Rule of Civil Procedure 15(a)(2) establishes a liberal policy favoring amendment: "The court should freely give leave when justice so requires." This policy reflects the fundamental principle that cases should be decided on their merits rather than technicalities. Foman v. Davis, 371 U.S. 178, 182 (1962).

The Supreme Court has instructed that leave to amend should be granted in the absence of factors such as "undue delay, bad faith or dilatory motive on the part of the movant, repeated failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party by virtue of allowance of the amendment, [or] futility of amendment." Id. None of these factors is present here:

Plaintiff filed his First Amended Complaint just three days after the Court's 30-day deadline—a minimal delay that is entirely understandable given his pro se status and visual disability. When the Court subsequently ordered Plaintiff not to further amend without leave (ECF No. 16), he promptly filed a Motion for Leave to File Second Amended Complaint (ECF No. 17), demonstrating his good-faith efforts to comply with Court directives despite his limitations.

The Supreme Court has emphasized that "Rule 15's policy of favoring amendments to pleadings should be applied with 'extreme liberality.'" United States v. Webb, 655 F.2d 977, 979 (9th Cir. 1981) (quoting Rosenberg Bros. & Co. v. Arnold, 283 F.2d 406 (9th Cir. 1960)). This liberal policy is particularly applicable to minor delays by pro se litigants with disabilities.

In Keith v. Volpe, 858 F.2d 467, 476 (9th Cir. 1988), the court emphasized that "in the absence of prejudice to the opposing party, the test for allowing an amendment is not whether the amendment is technically necessary, but primarily whether the amendment facilitates resolution of the case on the merits." Here, allowing amendment to include all defendants facilitates resolution of the entire dispute on the merits rather than forcing piecemeal litigation. Moreover, every single element of every single claim while only using evidence from the defendants or state agencies is easily reachable and if anything it’s a waste of courts resources to not end it years ago.

The Defendants cannot claim undue prejudice from the addition of parties who were already on notice of the claims against them. The West Linn Defendants and DDA Portlock were

named in the state court action initiated in November 2022, and they have been litigating these same claims in that forum. Lillegren Decl., Ex. 1, 4.

The Supreme Court has emphasized that "prejudice to the opposing party... carries the greatest weight" in determining whether to allow amendment. Eminence Capital, LLC v. Aspeon, Inc., 316 F.3d 1048, 1052 (9th Cir. 2003) (citing DCD Programs, Ltd. v. Leighton, 833 F.2d 183, 185 (9th Cir. 1987)). Here, there is no plausible claim of prejudice when the added defendants have been litigating the same claims for years and there was written permission to move the case.

In Howey v. United States, 481 F.2d 1187, 1190-91 (9th Cir. 1973), the court explained that Rule 15's purpose is "to facilitate decision on the merits, rather than on the pleadings or technicalities" and noted that "[t]his court has on several occasions emphasized that this policy should be applied with 'extreme liberality.'" The court listed undue delay, bad faith, prejudice, and futility as counterweights to liberal amendment—none of which are present here.

As detailed in other sections of this opposition, Plaintiff's amended complaints state plausible claims for relief against all named defendants, including the West Linn Defendants and DDA Portlock. The amendments are not futile but rather necessary to present the full scope of the alleged constitutional violations.

Courts have emphasized that "dismissal with prejudice and without leave to amend is not appropriate unless it is clear... that the complaint could not be saved by amendment." Eminence

Capital, 316 F.3d at 1052. Here, the amendments strengthen rather than weaken the complaint, making dismissal particularly inappropriate.

In Lopez v. Smith, 203 F.3d 1122, 1127 (9th Cir. 2000) (en banc), the court noted that "[d]ismissal of a pro se complaint without leave to amend is proper only if it is absolutely clear that the deficiencies of the complaint could not be cured by amendment." Where, as here, amendment has already cured initial deficiencies by providing extensive factual detail, dismissal is particularly unwarranted.

The overarching standard—whether "justice so requires" amendment—strongly favors permitting Plaintiff's amendments. The alleged constitutional violations involve interconnected conduct by multiple officials across different agencies. Artificial compartmentalization of these claims would hinder rather than facilitate justice.

As the Supreme Court emphasized in Foman, 371 U.S. at 182, "the Federal Rules reject the approach that pleading is a game of skill in which one misstep by counsel may be decisive to the outcome and accept the principle that the purpose of pleading is to facilitate a proper decision on the merits."

In Harris v. Maricopa County Superior Court, 631 F.3d 963, 972 (9th Cir. 2011), the court explained that "Congress and the courts have long recognized that civil rights litigants are the 'private attorneys general' on whom we rely to enforce the nation's anti-discrimination laws." This special status in enforcing constitutional rights further justifies liberal amendment.

The Court has inherent authority to grant leave to amend nunc pro tunc (retroactively), effectively ratifying amendments that have already been filed. See, e.g., Bonin v. Calderon, 59 F.3d 815, 845 (9th Cir. 1995) (discussing courts' authority to act nunc pro tunc).

Given the minimal delay in filing the First Amended Complaint and the prompt request for leave regarding the Second Amended Complaint, the Court should exercise this authority to permit the amendments nunc pro tunc if necessary.

In Hill v. U.S. Immigration & Naturalization Serv., 714 F.2d 1470, 1480 (9th Cir. 1983), the court noted that "[c]ourts have allowed amendments beyond the scope of the particular defects which the court has ordered remedied, especially where pro se plaintiffs are involved."

Judicial economy strongly favors permitting amendment to include all relevant parties in a single action rather than forcing piecemeal litigation of interconnected claims.

Courts have long recognized the importance of avoiding "multiplicity of actions" and the "piecemeal litigation of claims." Continental Ins. Co. v. N.L.R.B., 561 F.2d 579, 585 (9th Cir. 1977). Requiring Plaintiff to pursue separate actions against different defendants for the same underlying events would waste judicial resources and risk inconsistent outcomes.

In Mower v. Boger, 2:12-cv-0153, 2012 WL 1657192, at *5 (E.D. Cal. May 10, 2012), the court explained that "judicial economy—that is, the efficiency and cost savings achieved through the litigation of all claims in a single case—cuts in favor of adjudicating [plaintiff's]

claims in one action." The same principle applies here, where Plaintiff's claims against all defendants arise from the same core events.

The factual and legal issues in Plaintiff's claims against all defendants are deeply intertwined. Consolidated discovery and trial will be far more efficient than separate proceedings for different defendants.

In Hall v. National Recovery Systems, Inc., 2:11-cv-137, 2011 WL 4458776, at *1 (E.D. Cal. Sept. 23, 2011), the court explained that "a plaintiff is permitted to join multiple defendants in a single action if there is asserted against them jointly, severally, or in the alternative, any right to relief in respect of or arising out of the same transaction, occurrence, or series of transactions or occurrences." Here, all of Plaintiff's claims arise from the same series of transactions or occurrences: his arrest, persecution, and detention.

Separate adjudication of claims against different defendants arising from the same events risks inconsistent judgments on identical issues. Courts seek to avoid such inconsistency. See, e.g., Adams v. California Dep't of Health Servs., 487 F.3d 684, 688 (9th Cir. 2007) (discussing interest in avoiding inconsistent judgments).

In Elmore v. Henderson, 227 F.3d 1009, 1012 (7th Cir. 2000), the court explained that "inconsistent judgments" are a "major reason for joining claims arising from the same events." Here, the risk of inconsistent judgments is particularly acute given the interconnected nature of the alleged misconduct across multiple agencies.

The interests of justice, principles of liberal amendment, Plaintiff's pro se and disabled status, prior notice to all defendants, and considerations of judicial economy all strongly support permitting Plaintiff's amendments. The Court should exercise its discretion to allow the amended complaints, either by recognizing their validity or by granting leave nunc pro tunc.

The West Linn Defendants argue that the West Linn Police Department is not a proper party under § 1983 because it is not a "person" within the meaning of the statute. Similarly, the County Defendants argue that the Clackamas County Sheriff's Office and Clackamas County Jail are not proper entities for § 1983 claims. While there is merit to these technical arguments, they do not justify dismissal but rather simple substitution of the proper municipal entities.

Under § 1983, municipal departments like police departments and jails are typically not considered separate legal entities subject to suit, but the municipalities that operate them are proper defendants. See Monell v. Dep't of Soc. Servs., 436 U.S. 658, 690 (1978) (municipalities are "persons" subject to liability under § 1983).

Rather than dismissing claims against department-level entities, courts typically substitute the proper municipal entity. See, e.g., Vance v. County of Santa Clara, 928 F. Supp. 993, 996 (N.D. Cal. 1996) ("The Court will simply construe the claims against the Department as claims against the County.").

For the West Linn Police Department, the proper defendant is the City of West Linn. For the Clackamas County Sheriff's Office and Clackamas County Jail, the proper defendant is Clackamas County (which is already named).

Courts routinely allow pro se plaintiffs to amend to name proper municipal entities rather than dismissing claims outright. See, e.g., United States v. Kama, 394 F.3d 1236, 1239-40 (9th Cir. 2005) (Ferguson, J., concurring) (noting that police departments are not "persons" under § 1983 but municipalities are).

In Streit v. County of Los Angeles, 236 F.3d 552, 565 (9th Cir. 2001), the court held that "the Los Angeles County Sheriff's Department is a county actor when it performs the functions" at issue, and treated the Sheriff's Department as the County itself for § 1983 purposes. Similarly here, the Clackamas County Sheriff's Office and Jail are county actors performing county functions.

Courts have emphasized that pro se plaintiffs should be given special latitude regarding technical defects in naming proper parties. See, e.g., Donald v. Cook County Sheriff's Dep't, 95 F.3d 548, 555 (7th Cir. 1996) ("When the substance of the complaint is clear, district courts should not dismiss pro se complaints for misnaming defendants.").

The Ninth Circuit has emphasized that "the clear policy of the Ninth Circuit and of the Federal Rules of Civil Procedure [is] to facilitate a decision on the merits, particularly in civil rights actions filed by pro se plaintiffs, rather than to bar plaintiffs at the courthouse door."

Henyard v. Suh, 2013 WL 8071922, at *1 (C.D. Cal. June 6, 2013) (citing Lopez v. Smith, 203 F.3d 1122, 1134 (9th Cir. 2000) (en banc)).

In Jackson v. Bloomfield, 731 F.2d 652, 654 (9th Cir. 1984), the court emphasized that "district courts must liberally construe civil rights complaints filed by pro se litigants." The court noted that when a pro se plaintiff is "ignorant of the technical requirements of legal pleadings," the court should interpret the complaint and determine whether amendment would cure any deficiencies.

It is common practice in § 1983 litigation to construe claims against department-level entities as claims against their governing municipalities. See, e.g., Abeytia v. Fresno Police Dep't, 2009 WL 1674568, at *12 (E.D. Cal. June 15, 2009) (construing claims against police department as claims against city).

This approach recognizes the reality that pro se plaintiffs may not be familiar with the technical legal distinction between a municipal department and the municipality itself.

In Gonzalez v. City of Martinez, 403 F. Supp. 3d 857, 863 (N.D. Cal. 2019), the court explained that "municipal departments are generally not considered 'persons' under § 1983" but "claims against municipal departments should be construed as claims against the municipalities themselves."

While certain entities may not be properly named, the individual officers—Gunnarson and Blyth—are unquestionably proper defendants in their individual capacities.

The Supreme Court has affirmed that state officials sued in their personal capacities are "persons" under § 1983. Hafer v. Melo, 502 U.S. 21, 31 (1991). Such officials may be held personally liable for actions taken under color of state law that violate federal rights.

In Hafer, the Court emphasized that "state officials, sued in their individual capacities, are 'persons' within the meaning of § 1983" and that "the Eleventh Amendment does not bar such suits." 502 U.S. at 23. This principle is fundamental to § 1983 jurisprudence and applies equally to local officials like Officers Gunnarson and Blyth.

The SAC alleges direct personal involvement by Officers Gunnarson and Blyth in the constitutional violations, including:

1. Conducting a biased investigation and false arrest (SAC ¶¶ 45, 101-102)

2. Fabricating evidence and misrepresenting facts (SAC ¶¶ 45-47, 110)

3. Conspiring to manufacture charges (SAC ¶¶ 49, 93, 116-117)

4. Failing to protect Plaintiff despite knowledge of risk (SAC ¶¶ 41, 43, 87, 122)

These allegations of personal involvement are sufficient to maintain claims against the officers in their individual capacities. See Leer v. Murphy, 844 F.2d 628, 633 (9th Cir. 1988) (liability under § 1983 requires showing of personal participation in alleged rights deprivation).

In Iqbal, 556 U.S. at 676, the Supreme Court reaffirmed that "a plaintiff must plead that each Government-official defendant, through the official's own individual actions, has violated the Constitution." Plaintiff's detailed allegations regarding Officers Gunnarson and Blyth's actions satisfy this requirement.

The West Linn Defendants have not raised a qualified immunity defense in their motion to dismiss. Even if they had, such a defense would be premature at this stage, as the facts alleged in the complaint must be taken as true for purposes of a motion to dismiss. See Keates v. Koile, 883 F.3d 1228, 1234-35 (9th Cir. 2018) (discussing qualified immunity analysis at motion to dismiss stage).

In Saucier v. Katz, 533 U.S. 194, 201 (2001), the Supreme Court explained that the qualified immunity analysis asks: (1) whether the facts alleged show a violation of a constitutional right, and (2) whether the right was clearly established. At the motion to dismiss stage, the first prong is determined based on the plaintiff's allegations, which must be accepted as true.

The technical naming issues raised by Defendants should not result in dismissal but rather in simple substitution of the proper municipal entities. The City of West Linn should be substituted for the West Linn Police Department, and all claims against Clackamas County entities should be construed as claims against Clackamas County itself. The individual officers remain proper defendants in their individual capacities.

All Defendants argue that the Second Amended Complaint fails to state claims upon which relief can be granted. These arguments ignore the wealth of specific factual allegations in the complaint, which far exceed the plausibility threshold required at this stage.

> The first cause of action alleges unlawful arrest in violation of the Fourth Amendment. To state a claim for false arrest under § 1983, a plaintiff must allege facts showing: (1) the defendant arrested the plaintiff without probable cause, and (2) the arrest caused the plaintiff harm. Lacey v. Maricopa County, 693 F.3d 896, 918 (9th Cir. 2012).
>
> The SAC provides detailed factual allegations supporting each element:
>
> Plaintiff alleges multiple specific facts showing the arrest lacked probable cause:

1. Officers Gunnarson and Blyth arrested Plaintiff after only 7-8 minutes on scene, an insufficient time to conduct any meaningful investigation. SAC ¶¶ 45, 85, 102; Lofall Decl. ¶ 48.

2. Officers ignored clear exculpatory evidence, including:

3. o Dispatch notes confirming Plaintiff had reported Macy's destructive behavior over the previous days (SAC ¶ 43)

4. o Physical evidence of broken windows and property damage caused by Macy (SAC ¶ 39)

5. o Macy's possession of tools used for destruction (hammer, hose) (SAC ¶ 44)

6. o Photographic evidence showing Macy with work gloves, a hammer, and a hose spraying inside the broken windows (SAC ¶ 47; Lofall Decl. ¶ 37)

3. Officer Blyth allegedly researched harassment requirements, found them unmet based on the facts, and then informed Officer Gunnarson that "another incident" was needed to support the charge—after which they allegedly manufactured this incident. SAC ¶ 44; Lofall Decl. ¶ 44.

4. Officers used misleading language in reports, such as claiming Macy Sprayed water was 'at' a single windows when more clearly stated, Macy took a hammer pounded out seven windows, and a glass door, took two garden hoses and sprayed where a window used to be, flooding the inside of the residence, Plaintiffs bed, tools, electronics, tipped the fridge over, cut the power, the heat, temperatures in the low 20s and plaintiff didn't have a single dry piece of property, then she covered everything in 30 pounds of flour each of three days intentionally purchased 5 gallons of gas and in front of the officers threatened to burn all plaintiffs property.

5. Officers left the gas with Macy.

6. Meanwhile Macy had Plaintiffs work files and car keys.

7. All of which was ignored and left out of discovery, violating policy and the law.

8. They also had rehearsed things like adding the word "only" to suggest Plaintiff released Macy "only" because her daughter took a picture. SAC ¶¶ 46-47; Lofall Decl. ¶¶ 46-47.

These detailed allegations go far beyond "conclusory statements" and provide specific facts that, if proven, would establish lack of probable cause.

> Courts have emphasized that police officers "may not deliberately omit facts that tend to negate probable cause" from arrest reports. Reeves v. Churchich, 484 F.3d 1244, 1251 (10th Cir. 2007); see also Hervey v. Estes, 65 F.3d 784, 789 (9th Cir. 1995) (discussing duty not to deliberately or recklessly omit material information from arrest warrants). The alleged deliberate omission of exculpatory evidence, if proven, would invalidate any probable cause determination, however undeniable because they are in the reports Plaintiff already collected through other means.

In Galbraith v. County of Santa Clara, 307 F.3d 1119, 1126 (9th Cir. 2002), the court held that "there is a clearly established constitutional due process right not to be subjected to criminal charges on the basis of false evidence that was deliberately fabricated by the government." Plaintiff's allegations of evidence fabrication, already proven, establish a constitutional violation.

The SAC clearly alleges the arrest caused Plaintiff harm, including:

1. Four months of incarceration (SAC ¶¶ 54, 68)

2. Loss of property (SAC ¶ 69)

3. Impact on civil claims (SAC ¶¶ 69, 72)

4. Physical suffering (SAC ¶ 72)

5. Emotional distress (SAC ¶¶ 54, 124)

These allegations sufficiently establish causation and harm, the second element of a false arrest claim.

In Borunda v. Richmond, 885 F.2d 1384, 1389 (9th Cir. 1988), the court held that an arrest without probable cause gives rise to a § 1983 claim for damages for the period of detention. Plaintiff has clearly alleged such damages resulting from his arrest and subsequent detention.

The SAC specifically identifies the roles of Officers Gunnarson and Blyth in the unlawful arrest:

1. Officer Blyth researched harassment requirements and informed Officer Gunnarson that "another incident" was needed (SAC ¶ 44; Lofall Decl. ¶ 44)

2. Both officers allegedly manipulated facts in their reports (SAC ¶¶ 46-47; Lofall Decl. ¶¶ 46-47)

3. Both officers participated in the arrest (SAC ¶ 45; Lofall Decl. ¶ 48)

These specific allegations of personal involvement satisfy the pleading requirements for individual liability under § 1983. See Leer v. Murphy, 844 F.2d 628, 633 (9th Cir. 1988).

The West Linn Defendants' argument that the complaint contains only "conclusory statements/opinions as 'facts'" (ECF No. 36, p. 7) is directly contradicted by the detailed factual allegations in the SAC. These allegations, assumed true as required at this stage, establish a plausible claim for false arrest in violation of the Fourth Amendment.

> The third cause of action alleges conspiracy to violate civil rights under § 1983. To state a § 1983 conspiracy claim, a plaintiff must allege: (1) an agreement between two or more persons, (2) to act together to deprive the plaintiff of a constitutional right, and (3) an overt act in furtherance of the conspiracy that results in such deprivation. Avalos v. Baca, 596 F.3d 583, 592 (9th Cir. 2010).

The SAC provides detailed factual allegations supporting each element:

The SAC alleges multiple specific agreements:

1. Officers Gunnarson and Blyth allegedly conspired to manufacture charges against Plaintiff, with Officer Blyth explicitly telling Officer Gunnarson they needed to "come up with another incident" to support a harassment charge. SAC ¶ 44; Lofall Decl. ¶ 44.

2. DDA Portlock, Plaintiff's court-appointed advisor Rubin Medina, and Judge Steele allegedly colluded to falsely claim that Plaintiff had COVID-19 to delay his trial. SAC ¶ 73; Lofall Decl. ¶ 73.

3. DDA Portlock allegedly coordinated with Officers Gunnarson and Blyth to suppress exculpatory evidence, including body camera footage. SAC ¶¶ 66, 88; Lofall Decl. ¶ 45.

These allegations go beyond mere parallel conduct and specifically allege agreements between the defendants. See United Steelworkers of Am. v. Phelps Dodge Corp., 865 F.2d 1539, 1541 (9th Cir. 1989) (conspiracy may be inferred from circumstantial evidence).

In Avalos, 596 F.3d at 592, the Ninth Circuit held that "specific allegations that defendants agreed to fabricate evidence" stated a plausible conspiracy claim sufficient to survive a motion to dismiss. Similarly, Plaintiff's allegations that Officers Gunnarson and Blyth agreed to "come up with another incident" are specific claims of an agreement to fabricate evidence.

The SAC alleges that the conspirators intended to deprive Plaintiff of multiple constitutional rights, including:

1. Fourth Amendment right to be free from unreasonable seizure (SAC ¶¶ 101, 106, 120)

2. Due process rights (SAC ¶¶ 73, 114, 120)

3. Right to assistance of counsel (SAC ¶ 73; Lofall Decl. ¶ 73)

4. Right of access to courts (SAC ¶¶ 74, 76, 77; Lofall Decl. ¶¶ 74, 76, 77)

These allegations sufficiently establish the intent element of a conspiracy claim. See Lacey, 693 F.3d at 935 (discussing intent requirement for conspiracy claims).

In Keates v. Koile, 883 F.3d 1228, 1241 (9th Cir. 2018), the court found that allegations that defendants "shared a common unconstitutional goal" and "reached a mutual agreement and

understanding that they would deliberately deny [the plaintiff] due process of law" were sufficient to state a conspiracy claim.

The SAC alleges multiple overt acts in furtherance of the alleged conspiracies:

1. Officers Gunnarson and Blyth's false arrest of Plaintiff (SAC ¶ 45; Lofall Decl. ¶ 48)

2. Fabrication of evidence and misrepresentation of facts in police reports (SAC ¶¶ 45-47; Lofall Decl. ¶¶ 44-47)

3. Suppression of exculpatory evidence, including body camera footage (SAC ¶¶ 51, 66, 88; Lofall Decl. ¶ 45)

4. False statements in court regarding Plaintiff's COVID-19 status (SAC ¶ 73; Lofall Decl. ¶ 73)

5. Deletion of Plaintiff's legal materials (SAC ¶ 74; Lofall Decl. ¶ 74)

These allegations of specific overt acts satisfy the third element of a conspiracy claim. See Fonda v. Gray, 707 F.2d 435, 438 (9th Cir. 1983) (discussing overt act requirement).

The West Linn Defendants' argument that the conspiracy claim contains insufficient factual support is directly contradicted by these detailed allegations. The SAC provides specific facts about who conspired with whom, what they agreed to do, and what overt acts they took in

furtherance of the conspiracy. These allegations, assumed true as required at this stage, establish a plausible claim for conspiracy to violate civil rights under § 1983.

> The ninth cause of action alleges a Monell claim for failure to train and official custom of deliberate indifference. To state a Monell claim, a plaintiff must allege: (1) a constitutional violation, (2) caused by a municipal policy, practice, or custom, or failure to train amounting to deliberate indifference. Monell v. Dep't of Soc. Servs., 436 U.S. 658, 690-91 (1978); City of Canton v. Harris, 489 U.S. 378, 388-89 (1989).
>
> The SAC provides detailed factual allegations supporting each element:

As detailed above, the SAC alleges multiple constitutional violations by Officers Gunnarson and Blyth, including false arrest, malicious prosecution, conspiracy, and failure to protect. These allegations satisfy the first element of a Monell claim.

The SAC alleges several specific policies, practices, or customs:

1. Policy regarding body camera footage: Plaintiff alleges the City of West Linn changed its policy regarding body camera footage specifically to block his access to evidence. SAC ¶ 67; Lofall Decl. ¶ 71. This specific policy change, allegedly targeted at Plaintiff, is a textbook example of a municipal policy that can support Monell liability.

2. Custom of biased investigations: The SAC alleges a pattern of biased policing practices, exemplified by the officers' failure to conduct any meaningful investigation before arresting Plaintiff, their bias in favor of Macy despite clear evidence of her aggression, and their manipulation of evidence to support a predetermined outcome. SAC ¶¶ 45, 47,

85-88, 93-94, 102-104; Lofall Decl. ¶¶ 44-49. These allegations suggest a custom of biased policing that led to Plaintiff's constitutional injuries.

3. Custom of ignoring or fabricating evidence: The SAC alleges a pattern of officers ignoring exculpatory evidence and fabricating inculpatory evidence, suggesting a custom or practice within the department. SAC ¶¶ 45-47, 53, 85-88; Lofall Decl. ¶¶ 44-49, 53.

These allegations of specific policies and customs distinguish this case from those relying on bare assertions of municipal liability. See Castro v. County of Los Angeles, 833 F.3d 1060, 1075-76 (9th Cir. 2016) (discussing sufficiency of Monell allegations).

In Galbraith, 307 F.3d at 1127, the court held that a plaintiff need not specifically identify the particular policy at the pleading stage, so long as the allegations suggest a policy or custom that violated the plaintiff's rights. The SAC's detailed allegations of a pattern of misconduct satisfy this standard.

The SAC also alleges failure to train:

1. Failure to train officers in proper investigation techniques: The 8-minute arrest without meaningful investigation suggests inadequate training in basic investigative procedures. SAC ¶¶ 45, 85, 102; Lofall Decl. ¶ 48.

2. Failure to train officers in recognizing and preserving exculpatory evidence: The officers' alleged disregard for clear exculpatory evidence suggests inadequate training in evidence handling. SAC ¶¶ 43, 47, 87, 88; Lofall Decl. ¶¶ 33, 47, 87, 88.

3. Failure to train officers in unbiased policing: The officers' alleged bias in favor of Macy despite clear evidence of her aggression suggests inadequate training in unbiased policing. SAC ¶¶ 39-44, 85, 93; Lofall Decl. ¶¶ 28-34, 85, 93.

The SAC alleges that the need for more or different training was obvious and the inadequacy was likely to result in constitutional violations, satisfying the deliberate indifference standard. SAC ¶¶ 95, 149; see City of Canton, 489 U.S. at 390 (discussing deliberate indifference standard).

In Connick v. Thompson, 563 U.S. 51, 62 (2011), the Supreme Court explained that deliberate indifference can be established by showing that "the need for more or different training is so obvious, and the inadequacy so likely to result in the violation of constitutional rights, that the policymakers... can reasonably be said to have been deliberately indifferent to the need." Plaintiff's allegations meet this standard.

The SAC alleges that these policies, customs, and training failures were the moving force behind the constitutional violations:

1. The policy change regarding body camera footage allegedly prevented Plaintiff from accessing exculpatory evidence, directly hampering his defense. SAC ¶ 67; Lofall Decl. ¶ 71.

2. The custom of biased investigations allegedly led directly to Plaintiff's false arrest and malicious prosecution. SAC ¶¶ 45, 47, 85-88, 93-94, 102-104; Lofall Decl. ¶¶ 44-49.

3. The failure to train officers in proper investigation techniques allegedly led directly to the 8-minute sham investigation and resulting false arrest. SAC ¶¶ 45, 85, 102; Lofall Decl. ¶ 48.

These allegations establish a direct causal link between the municipal policies/customs and the constitutional violations, satisfying the causation element. See City of Canton, 489 U.S. at 391 (discussing causation in failure to train cases).

The West Linn Defendants' argument that the Monell claim contains only "labels and conclusions" (ECF No. 36, p. 9) is contradicted by these detailed factual allegations. The SAC provides specific facts about municipal policies, customs, and training failures that allegedly caused constitutional violations. These allegations, assumed true as required at this stage, establish a plausible Monell claim.

The seventh cause of action alleges deliberate indifference to medical needs in violation of the Fourteenth Amendment. For pretrial detainees, claims of inadequate medical care are evaluated under an objective deliberate indifference standard: (1) the defendant made an intentional decision regarding the conditions of confinement; (2) those conditions put the plaintiff at substantial risk of

> suffering serious harm; (3) the defendant did not take reasonable available measures to abate that risk, even though a reasonable official in the circumstances would have appreciated the high degree of risk; and (4) by not taking such measures, the defendant caused the plaintiff's injuries. Gordon v. County of Orange, 888 F.3d 1118, 1125 (9th Cir. 2018).

The SAC provides detailed factual allegations supporting each element:

The SAC alleges multiple intentional decisions:

1. Denial of prescription eyewear: Plaintiff, who is legally blind, alleges he was denied access to his prescription contact lenses and proper eyewear throughout his detention. SAC ¶ 136; Lofall Decl. ¶ 68. This was not an oversight but an intentional decision.

2. Placement with COVID-positive inmate: Plaintiff alleges jail staff deliberately placed him in a cell with an inmate who had COVID-19. SAC ¶ 72; Lofall Decl. ¶ 72. This placement decision was intentional.

3. Deletion of medical records: Plaintiff alleges jail staff deliberately deleted his medical records documenting his COVID-19 illness. SAC ¶ 75; Lofall Decl. ¶ 68. This was an intentional act of record destruction.

These allegations establish intentional decisions regarding Plaintiff's conditions of confinement. See Gordon, 888 F.3d at 1125 (discussing intentional decision requirement).

In Kingsley v. Hendrickson, 576 U.S. 389, 396 (2015), the Supreme Court clarified that for pretrial detainees, "the defendant must possess a purposeful, a knowing, or possibly a

recklessly indifferent state of mind" with respect to actions that put the plaintiff at risk. The SAC's allegations of deliberate denial of medical accommodations and placement with COVID-positive inmates meet this standard.

The SAC alleges these conditions created substantial risks of serious harm:

1. Legal blindness without corrective lenses: Being denied prescription eyewear when legally blind creates a substantial risk of serious harm, including inability to navigate surroundings, read materials, or communicate effectively. Courts have recognized that "significant delay in providing eyeglasses creates a substantial risk of serious harm." Koehl v. Dalsheim, 85 F.3d 86, 88 (2d Cir. 1996).

2. COVID-19 exposure: Deliberate exposure to COVID-19 creates a substantial risk of serious illness, particularly in a jail setting. Courts have recognized that failure to implement adequate COVID-19 protections can create unconstitutional conditions. See, e.g., Roman v. Wolf, 977 F.3d 935, 943 (9th Cir. 2020).

3. Destruction of medical records: Destruction of medical records creates a risk of inappropriate or inconsistent medical care. See Estelle v. Gamble, 429 U.S. 97, 103-04 (1976) (discussing risks of inadequate medical care).

These allegations establish substantial risks of serious harm. See Conn v. City of Reno, 591 F.3d 1081, 1095 (9th Cir. 2010) (discussing substantial risk requirement).

In Colwell v. Bannister, 763 F.3d 1060, 1066 (9th Cir. 2014), the court held that denial of a medically necessary corrective lens for blindness in one eye "poses a substantial risk of serious harm to his future vision" and constitutes deliberate indifference. Plaintiff's allegations of being denied prescription lenses for his legal blindness are even more severe.

The SAC alleges jail staff failed to take reasonable available measures:

1. Plaintiff's requests for his prescription eyewear were allegedly ignored despite the obvious need and simple solution. SAC ¶ 136; Lofall Decl. ¶ 68.

2. Jail staff allegedly took no measures to protect Plaintiff from COVID-19 exposure; on the contrary, they allegedly deliberately exposed him. SAC ¶ 72; Lofall Decl. ¶ 72.

3. Plaintiff's grievances regarding medical care were allegedly ignored for five weeks and then summarily dismissed. SAC ¶ 82; Lofall Decl. ¶ 82.

These allegations establish failure to take reasonable available measures. See Gordon, 888 F.3d at 1125 (discussing reasonable measures requirement).

In Jett v. Penner, 439 F.3d 1091, 1098 (9th Cir. 2006), the court held that a delay of over a year in providing medical attention to a fractured thumb, despite repeated requests, could constitute deliberate indifference. Similarly, the prolonged denial of prescription eyewear to a legally blind detainee, despite repeated requests, would constitute deliberate indifference.

The SAC alleges these failures caused Plaintiff injuries:

1. Being effectively blind during detention caused physical and psychological suffering. SAC ¶ 136; Lofall Decl. ¶ 68.

2. Plaintiff contracted COVID-19 as a result of deliberate exposure. SAC ¶ 72; Lofall Decl. ¶ 72.

3. Deletion of medical records resulted in inadequate follow-up care. SAC ¶ 75; Lofall Decl. ¶ 68.

These allegations establish resulting injuries. See Gordon, 888 F.3d at 1125 (discussing causation requirement).

The County Defendants argue that Plaintiff's medical care claims are insufficiently pleaded, but these detailed factual allegations contradict that assertion. The SAC provides specific facts about the denial of necessary medical care, the substantial risks created, the failure to take reasonable measures, and the resulting injuries. These allegations, assumed true as required at this stage, establish a plausible claim for deliberate indifference to medical needs in violation of the Fourteenth Amendment.

The County Defendants argue that Plaintiff's state law claim for intentional interference with contractual relations should be dismissed for failing to plead compliance with the Oregon Tort Claims Act (OTCA). This argument fails for several reasons.

The OTCA requires notice of a claim within 180 days of the alleged loss or injury. Or. Rev. Stat. § 30.275. While Plaintiff does not explicitly plead compliance with this notice requirement, his allegations suggest substantial compliance.

> Oregon courts recognize that substantial compliance with the OTCA notice requirements is sufficient. Brown v. Portland Sch. Dist. No. 1, 291 Or. 77, 81, 628 P.2d 1183, 1185 (1981). "Substantial compliance" means that "the plaintiff has satisfied the purpose of the statutory requirement—to give the defendant fair notice that it is the object of a claim, and fair opportunity to investigate the facts while still fresh." Flug v. University of Oregon, 335 Or. 540, 548, 73 P.3d 917, 922 (2003).

Here, Plaintiff filed over 100 motions to try and resurrect claims where he lost over $300,000 not conclusory until the door closed at the supreme court when he couldn't get a waiver for the *Undertaking of Costs* from Clackamas County Courts in 2023 and 2024. Another deliberate ignorance situation, this one could have saved them liability but for some reason Clackamas County, (potentially other fraudulent actions as they are a repeated offender in that field).

Plaintiff's allegations suggest substantial compliance with the notice requirement:

1. State court action: Plaintiff filed a state court action in November 2022, within the 180-day period following his release from jail in July 2022. Lillegren Decl., Ex. 1, 4. This court filing provided actual notice to the County Defendants of the claims against them.

2. Grievances while in custody: Plaintiff alleges he filed multiple grievances during his detention. SAC ¶ 82; Lofall Decl. ¶ 82. These grievances, though allegedly ignored, constituted notice to the County of potential claims.

3. Statements during detention: Plaintiff alleges he notified various officials, including the State and Attorney General, of his intent to file a lawsuit while still in jail. SAC ¶ 61; Lofall Decl. ¶ 61. These notifications constituted notice of potential claims.

These allegations, monumented in the case file, establish substantial compliance with the OTCA notice requirement by ensuring the County Defendants had actual notice of potential claims within the statutory period.

Oregon courts have found substantial compliance in similar circumstances. See, e.g., Yunker v. Mathews, 33 Or. App. 251, 254, 576 P.2d 46, 47 (1978) (filing of complaint within notice period constituted substantial compliance); Brown, 291 Or. at 82, 628 P.2d at 1186 (communications giving sufficient information to allow investigation constituted substantial compliance).

Even if Plaintiff did not strictly comply with the OTCA notice provisions, the County Defendants had actual notice of his claims, which suffices under Oregon law.

Or. Rev. Stat. § 30.275(6) provides that "[a]ctual notice of claim to a public body is notice which is actually given to or received by a person responsible for or authorized to receive

tort claim notices." Courts have recognized that actual notice satisfies the OTCA requirements. See Flug, 335 Or. at 547, 73 P.3d at 921.

The County Defendants had actual notice of Plaintiff's claims through multiple channels:

1. State court action: The filing of Plaintiff's state court action in November 2022 provided actual notice to the County Defendants. Lillegren Decl., Ex. 1, 4.

2. Grievances and kites: Plaintiff's grievances and kites while in custody, though allegedly ignored, provided actual notice to jail officials. SAC ¶ 82; Lofall Decl. ¶ 82.

3. Direct communications: Plaintiff alleges direct communications with officials (and the DDA Rebecca Portlock) regarding his intent to sue. SAC ¶ 61; Lofall Decl. ¶ 61.

4. Clackamas County was served in a bunch of way, one way to County Clerks building and County Commissioner, and if the Clackamas County wanted to check they could schedule a visit with the prison and go ask for their self. The fact that this rubbish even comes out of their mouth means they haven't spent two seconds of their own time and in turn are wasting the courts time and here is a notice, although all Defendants already have received this one, that Plaintiff is going to seek redress shortly for all this time that they keep wasting on points that they already know.

These allegations, monumented in the criminal case file, establish actual notice to the County Defendants, satisfying the OTCA requirements. See Huff v. Great W. Seed Co., 322 Or. 457, 467, 909 P.2d 858, 864 (1996) (actual notice satisfies OTCA requirements).

Plaintiff's visual disability provides an additional basis for excusing strict compliance with the OTCA notice requirements.

Oregon law requires reasonable accommodations for individuals with disabilities in accessing government services, including the courts. See Or. Rev. Stat. § 659A.142 (prohibiting discrimination on the basis of disability in access to state services). This requirement extends to accommodations in legal proceedings and requirements. See Wright v. State Accident Insurance Fund, 289 Or. 323, 331, 613 P.2d 755, 759 (1980) (discussing accommodation of disabilities in legal contexts).

Plaintiff's legal blindness presented significant barriers to complying with technical notice requirements. SAC ¶ 136; Lofall Decl. ¶ 68. These barriers were compounded by his incarceration, which limited his access to accommodations and resources. SAC ¶¶ 64, 68, 74, 76, 77; Lofall Decl. ¶¶ 64, 68, 74, 76, 77.

Given these circumstances, strict enforcement of the OTCA notice requirements would effectively deny Plaintiff access to legal remedies based on his disability, contrary to Oregon law. See Tetrault v. State, 222 Or. App. 47, 57, 191 P.3d 784, 790 (2008) (discussing need to accommodate disabilities in legal contexts).

Courts have recognized that disabilities may justify flexibility regarding technical legal requirements. See, e.g., Torisky v. Schweiker, 446 F.3d 438, 443 (3d Cir. 2006) (discussing accommodation of disabilities in legal proceedings). Oregon courts should similarly accommodate Plaintiff's visual disability with regard to the OTCA notice requirements.

Equitable principles further support rejecting the County Defendants' OTCA defense.

Oregon recognizes that equitable estoppel may prevent a defendant from asserting certain defenses, including OTCA notice defenses, when the defendant's own conduct prevented the plaintiff from complying. See Lyden v. Goldberg, 260 Or. 301, 304-05, 490 P.2d 181, 182-83 (1971) (discussing equitable estoppel in statutory compliance context); Dillard v. Kern County, 23 Cal. 2d 271, 275-76, 144 P.2d 365, 367-68 (1943) (defendant's conduct may estop assertion of limitations defense).

Several aspects of the County Defendants' alleged conduct support equitable estoppel:

1. Detention beyond court-ordered release: Plaintiff alleges he was detained for an additional week after a court ordered his release on July 1, 2022. SAC ¶ 81; Lofall Decl. ¶ 81. This alleged unlawful detention impaired his ability to timely pursue legal remedies.

2. Destruction of legal materials: Plaintiff alleges jail staff deliberately deleted 62 of his legal files. SAC ¶ 74; Lofall Decl. ¶ 74. This alleged destruction of legal materials directly interfered with his ability to prepare and file claims.

3. Denial of law library access: Plaintiff alleges he was systematically denied access to the law library. SAC ¶ 76; Lofall Decl. ¶ 76. This alleged denial of access to legal resources further impaired his ability to understand and comply with legal requirements.

These allegations, when proven, will establish that the County Defendants' own conduct impaired Plaintiff's ability to comply with the OTCA notice requirements. Under such circumstances, equitable estoppel should prevent them from asserting an OTCA notice defense. See Lyden, 260 Or. at 304-05, 490 P.2d at 182-83.

The principle that no one may take advantage of their own wrong has special force here. See Glus v. Brooklyn Eastern District Terminal, 359 U.S. 231, 232-33 (1959). The County Defendants' alleged misconduct should preclude them from benefiting from that same misconduct through an OTCA notice defense.

The OTCA notice requirement is not an absolute barrier to Plaintiff's state law claim for intentional interference with contractual relations. Substantial compliance, actual notice, disability accommodation requirements, and equitable estoppel all provide bases for allowing this claim to proceed despite the lack of an explicit pleading of OTCA compliance.

VII CONCLUSION

For the foregoing reasons, all three Defendants' Motions to Dismiss should be denied in their entirety. The allegations in the Second Amended Complaint present serious, plausible

claims of constitutional violations that deserve to be heard on their merits, not dismissed on technical grounds.

Plaintiff has presented detailed factual allegations of egregious misconduct by West Linn police officers, the Deputy District Attorney, and County jail officials. These allegations describe a coordinated pattern of constitutional violations—from false arrest and malicious prosecution to inhumane jail conditions and obstruction of access to courts. The allegations are specific, plausible, and, when proven, will establish multiple violations of clearly established constitutional rights.

Multiple tolling doctrines preserve the timeliness of Plaintiff's claims given the extraordinary circumstances he faced, including his visual disability, incarceration barriers, active obstruction by Defendants, and the belated discovery of the full scope of the alleged conspiracy. Justice demands application of these doctrines to allow consideration of his serious constitutional claims on their merits.

Plaintiff's amendments to add all relevant defendants were proper given the interconnected nature of the alleged misconduct and the prior notice to all defendants through state court proceedings. Technical naming issues regarding municipal entities can be easily corrected without dismissal. DDA Portlock's alleged conduct falls outside the scope of protected prosecutorial functions and is therefore not shielded by absolute immunity.

Plaintiff's pro se status and visual disability warrant special consideration in assessing his pleadings and procedural compliance. The liberal construction afforded to pro se pleadings, particularly in civil rights cases, strongly favors allowing his claims to proceed to discovery, where the truth of these serious allegations can be tested through the proper adversarial process.

As the Supreme Court emphasized in Thompson v. Clark, courts should not let "quirks of procedure" defeat potentially meritorious civil rights claims. The detailed allegations in this case—including an 8-minute arrest despite exculpatory evidence, alleged collusion between prosecutors and judges, destruction of legal files in custody, denial of prescription eyeglasses to a legally blind detainee, and detention beyond a court-ordered release date—demand full and fair consideration. Justice so requires.

Dated: May 15, 2025.

s /*Tyler A. Lofall*

TYLER ALLEN LOFALL PRO SE
MAIL: 6880 N.W. 271st Ave
Hillsboro, OR 97124
E-mail: tyleralofall@gmail.com
(Email Service please leave msg. for confirmation)
Cell Phone: (386) 262-3322

CERTIFICATE OF COMPLIANCE

This memorandum contains 19,124 words, including headings, footnotes, and quotations, but excluding the caption, tables, signature block, and certificate of service, for all three defendants and each motion well under the 11,000 word limit.

CERTIFICATE OF SERVICE

I hereby certify that I served the foregoing PLAINTIFF'S CONSOLIDATED OPPOSITION TO ALL DEFENDANTS' MOTIONS TO DISMISS on all parties by using the Court's CM/ECF s Dated: May 15, 2025.

s /Tyler A. Lofall

TYLER ALLEN LOFALL PRO SE
MAIL: 6880 N.W. 271st Ave
Hillsboro, OR 97124
E-mail: tyleralofall@gmail.com
(Email Service please leave msg. for confirmation)
Cell Phone: (386) 262-3322